**About TKDL**

Traditional Knowledge Digital Library (TKDL) is a pioneering initiative of India to protect Indian traditional medicinal knowledge and prevent its misappropriation at International Patent Offices. Traditional Knowledge (TK) is a valuable yet vulnerable asset to indigenous and local communities who depend on TK for their livelihood. The healthcare needs of more than 70% population and livelihood of millions of people in India is dependent on traditional medicine. Globally too there has been renewed attention and interest in the use of traditional medicine increasing its vulnerability to exploitation. The grant of a US patent to wound healing properties of turmeric flags the danger of complacence in proactively guarding the traditional knowledge. The time, effort and money spent on revocation of turmeric patent at USPTO highlighted the need for putting in place a proactive mechanism for TK protection. The problem related to Indian TK is further compounded by the fact that India's traditional medicinal knowledge exists in languages such as Sanskrit, Hindi, Arabic, Urdu, Tamil etc. that too in ancient local dialects that are no more in practice. Thus, the published Indian TK literature is neither accessible nor understood by patent examiners at international patent offices.

Traditional Knowledge Digital Library has overcome the language and format barrier by systematically and scientifically converting and structuring the available contents of the ancient texts on Indian Systems of Medicines i.e. Ayurveda, Siddha, Unani and Sowa Rigpa as well as Yoga, into five international languages, namely, English, Japanese, French, German and Spanish, with the help of information technology tools and an innovative classification system - Traditional Knowledge Resource Classification (TKRC). As on date, more than 4.54 lakh formulations/ practices have been transcribed into the TKDL database.

TKRC has structured and classified the Indian Traditional Medicine System into several thousand subgroups for Ayurveda, Unani, Siddha and Yoga. TKRC enabled incorporation of about 200 sub-groups under A61K 36/00 in International Patent Classification instead of few sub-groups earlier available on medicinal plants under A61K 35/00, thus enhancing the quality of search and examination of prior art with respect to patent applications field in the area of traditional knowledge.

TKDL has also set international specifications and standards for setting up of TK databases based on TKDL specifications. This was adopted in 2003 by the Committee in fifth session of the Intergovernmental Committee (IGC) of WIPO on Intellectual Property and Genetic Resources, Traditional Knowledge and Expression of folklore.

TKDL technology integrates diverse disciplines and languages such as Ayurveda, Unani, Siddha, Yoga, Sanskrit, Arabic, Urdu, Persian, Tamil, English, Japanese, Spanish, French, German, modern science & modern medicine. Currently, TKDL is based on books of Indian Systems of Medicine, which are available in open domain and can be sourced by any individual/organization at national/international level. TKDL acts as a bridge between these books (prior art) and International patent examiners.

At present, as per the approval of Cabinet Committee on Economic Affairs, access of TKDL is available to sixteen Patent Offices (European Patent Office, United State Patent & Trademark Office, Japan Patent Office, United Kingdom Patent Office, Canadian Intellectual Property Office, German Patent Office, Intellectual Property Australia, Indian Patent Office, Chile Patent Office, Intellectual Property Corporation of Malaysia, Rospatent- Intellectual Property Office of Russia, Peru Patent Office, Spanish Patent and Trademark Office, Danish Patent and Trademark office, National Industrial Property Institute, France and Eurasian Patent Office), under TKDL Access (Non-disclosure) Agreement. As per the terms and conditions of the Access agreement, examiners of patent office can utilize TKDL for search and examination purposes only and cannot reveal the contents of TKDL to any third party unless it is necessary for the purpose of citation. TKDL Access Agreement is unique in nature and has in-built safeguards on Non-disclosure to protect India's interest against any possible misuse.

In addition, pre-grant oppositions are being filed at various International Patent Offices, along with prior art evidences from TKDL. Significant impact has already been realized. So far more than 324 patent applications have either been set aside/ withdrawn/ amended, based on the prior art evidences present in the TKDL database without any cost and in few weeks/months of time, whereas APEDA had to spend about seven crores towards legal fee only for getting few claims of Basmati rice patent revoked.

TKDL is proving to be an effective deterrent against bio-piracy and has been recognized internationally as a unique effort. TKDL has set a benchmark in TK protection around the world, particularly in TK-rich countries, by demonstrating the advantages of proactive action and the power of strong deterrence. The key here is preventing the grant of wrong patents by ensuring access to TK related prior art for patent examiners without restricting the use of traditional knowledge.

For further query on TKDL and Access Agreement (for Patent Offices), contact Head, CSIR-Traditional Knowledge Digital Library Unit (email: headtkdl[at]csir[dot]res[dot]in )





**Bio-piracy of Traditional Knowledge**

▶**Introduction**

▶**Protecting Codified TK**

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▶Annex. 1

-Turmeric (Curcuma longa Linn.)
-Neem (Azadirachta indica A. Juss.)
-Basmati Rice (Oryza sativa Linn.)
-Kava (Piper methysticum Forster)
-Ayahuasca (Banisteriopsis caapi Mort.)
-Quinoa (Chenopodium quinoa Willd.)
-Hoodia (Hoodia gordonii (Masson) Sweet ex Decne)
-Other examples

**Introduction**

Traditional knowledge is a vast treasure of knowledge susceptible to misappropriation because of its immense potential. Traditional knowledge, particularly, related to the treatment of various diseases has provided leads for development of biologically active molecules.

Bio-piracy of codified Indian traditional knowledge continues, since, this information exists in regional languages, and there exists a language barrier due to which the patent offices are unable to search this information as prior art, before granting patents. Formulations used for the treatment of human ailments from traditional knowledge are time-tested since they have been in practice for centuries. The reliability of the traditional medicine systems coupled with the absence of such information with patent offices, provides an easy opportunity for interlopers for getting patents on these therapeutic formulations derived from traditional medicine systems.

**Misappropriation of Traditional Knowledge**

The grant of patents on non-patentable knowledge (related to traditional medicines), which is either based on the existing traditional knowledge of the developing world, or a minor variation thereof, has been causing a great concern to the developing world. Some of the examples given in Annex. 1 illustrate the bio-piracy of traditional knowledge and in many of these cases the country had to fight for revocation of the

granted patents, Revocation, may not be a feasible option possible for all the patents taken on the traditional knowledge since it involves huge costs and time.

**Protecting Codified Traditional Knowledge**

Patent examiners, in the international patent offices, while examining the patentability of any claimed subject matter, use available resources for searching the appropriate non-patent literature sources. Patent literature, is usually wholly contained in several distinctive databases and can be more easily searched and retrieved whereas non-patent literature prior art is often buried somewhere in the many and diverse sources. Therefore, a need was felt to create more easily accessible non-patent literature databases on traditional knowledge of India.

**Traditional Knowledge Digital Library - A tool for prevention of misappropriations of traditional knowledge**

TKDL contains information from Indian Systems of Medicine, viz., Ayurveda, Unani, Siddha, Sowa Rigpa as well as Yoga available in public domain. For this, traditional knowledge from the existing literature existing in local languages such as Sanskrit, Urdu, Arabic, Persian and Tamil in converted into digitized format, and is available in five international languages including English, German, Spanish, French and Japanese. Traditional Knowledge Resource Classification (TKRC), an innovative structured classification system for the purpose of systematic arrangement, dissemination and retrieval was evolved for about 5,000 subgroups against few subgroups available in International Patent Classification (IPC), related to medicinal plants. The information is structured under section, class, subclass, group and subgroup as per the International Patent Classification (IPC) for the convenience of its use by the international patent examiners. The TKDL database comprises about 4.24 lakh formulations/ practicesthat has been transcribed from ISM and Yoga texts.

Each text is read, medicinal formulation/ practice identified and converted into a structured language using Traditional Knowledge Resource Classification by subject (Ayurveda, Unani, Siddha, Sowa Rigpa or Yoga) experts. The codes are then filled into the data entry screen. The content (prior art) from ancient texts are also saved in the database. The translated version of all the TKRC codes is ported in the database. The abstraction is done by the subject experts. The codes once saved in meta data directory are converted in different languages based on Unicode technology. The formulations are converted into English, German, French Japanese and Spanish languages. The converted format of the formulation is readable and can be understood in general by all.

TKDL software with its associated classification system i.e., TKRC converts text in local languages into multiple languages as mentioned above. It may be noted that TKDL is not a transliteration, rather it is a knowledge-based conversion, where data abstracted once is converted into several languages by using Unicode, Metadata methodology. Traditional terminology is also converted into modern terminology, for example, Jwar to fever, Turmeric to Curcuma longa, Mussorika to small pox etc.

TKDL includes a search interface providing full text search and retrieval of traditional knowledge information on IPC and keywords in multiple languages. The search features include single or multiple word searches, complex Boolean expression search, Proximity search, Field search, Phrase search, etc in the form of simple and advance search options. Simple search lets the user search a combination of keywords. Advance search lets the user search using Boolean expressions, using the expressions like “near”, “and”, “and not”. Searches are also available on IPC and TKRC codes.

TKDL acts as a bridge between formulations existing in local languages and a Patent Examiner at a global level, since the database will provide information on modern as well as local names in a language and format understandable to Patent Examiners. It is expected that the issue of the gap on lack of access to prior art traditional knowledge shall get addressed.

**Annex. 1**

**Some examples of bio-piracy of traditional knowledge**

***Turmeric (Curcuma longa Linn.)***

The rhizomes of turmeric are used as a spice for flavouring Indian cooking. It also has properties that make it an effective ingredient in medicines, cosmetics and dyes. As a medicine, it has been traditionally used for centuries to heal wounds and rashes.

In 1995, two expatriate Indians at the University of Mississippi Medical Centre (Suman K. Das and Hari Har P. Cohly) were granted a US patent (no.5, 401,504) on use of turmeric in wound healing. The Council of Scientific & Industrial Research (CSIR), India, New Delhi filed a re-examination case with the US PTO challenging the patent on the grounds of existing of prior art. CSIR argued that turmeric has been used for thousands of years for healing wounds and rashes and therefore its medicinal use was not a novel invention. Their claim was supported by documentary evidence of traditional knowledge, including ancient Sanskrit text and a paper published in 1953 in the Journal of the Indian Medical Association. Despite an appeal by the patent holders,

the US PTO upheld the CSIR objections and cancelled the patent. The turmeric case was a landmark judgment case as it was for the first time that a patent based on the traditional knowledge of a developing country was successfully challenged. The US Patent Office revoked this patent in 1997, after ascertaining that there was no novelty; the findings by innovators having been known in India for centuries.

***Neem (Azadirachta indica A. Juss.)***

Neem extracts can be used against hundreds of pests and fungal diseases that attack food crops; the oil extracted from its seeds can be used to cure cold and flu; and mixed in soap, it provides relief from malaria, skin diseases and even meningitis. In 1994, European Patent Office (EPO) granted a patent (EPO patent No.436257) to the US Corporation W.R. Grace Company and US Department of Agriculture for a method for controlling fungi on plants by the aid of hydrophobic extracted Neem oil. In 1995, a group of international NGOs and representatives of Indian farmers filed legal opposition against the patent. They submitted evidence that the fungicidal effect of extracts of Neem seeds had been known and used for centuries in Indian agriculture to protect crops, and therefore, was unpatentable. In 1999, the EPO determined that according to the evidence all features of the present claim were disclosed to the public prior to the patent application and the patent was not considered to involve an inventive step. The patent granted on was Neem was revoked by the EPO in May 2000. EPO, in March 2006, rejected the challenge made in 2001 by the USDA and the chemicals multinational, W. R. Grace to the EPO's previous decision to cancel their patent on the fungicidal properties of the seeds extracted from the neem tree.

***Basmati Rice (Oryza sativa Linn.)***

Rice Tec. Inc. had applied for registration of a mark "Texmati" before the UK Trade Mark Registry. Agricultural and Processed Food Exports Development Authority (APEDA) successfully opposed it. One of the documents relied upon by Rice Tec as evidence in support of the registration of the said mark was the US Patent 5,663,484 granted by US Patent Office to Rice Tec on September 2, 1997 and that is how this patent became an issue for contest.

This US utility patent was unique in a way to claim a rice plant having characteristics similar to the traditional Indian Basmati Rice lines and with the geographical delimitation covering North, Central or South America or Caribbean Islands. The US PTO granted the patent to Rice Tec on September 2, 1997. The said patent covered 20 claims covering not only novel rice plant but also various rice lines; resulting plants and grains, seed deposit claims, method for selecting a rice plant for breeding and propagation. Its claims 15-17 were for a rice grain having characteristics similar to

those from Indian Basmati rice lines. The said claims 15-17 would have come in the way of Indian exports to US, if legally enforced.

Evidence from the IARI (Indian Agricultural Research Institute) Bulletin was used against claims 15-17. The evidence was backed up by the germplasm collection of Directorate of Rice Research, Hyderabad since 1978. CFTRI(Central Food Technological Research Institute) scientists evaluated the various grain characteristics and accordingly the claims 15-17 were attacked on the basis of the declarations submitted by CFTRI scientists on grain characteristics.

Eventually, a request for re-examination of this patent was filed on April 28, 2000. Soon after filling the re-examination request, Rice Tec chose to withdraw claims15-17 along with claim 4.Biopiracy of traditional knowledge is not limited to India alone. In fact, there have been several examples from other countries where traditional knowledge biopiracy has become a concern. Some of these examples are given below:

***Kava (Piper methysticum Forster)***

Kava is an important cash crop in the Pacific, where it is highly valued as the source of the ceremonial beverage of the same name. Over 100 varieties of Kava are grown in the Pacific, especially in Fiji and Vanuatu, where it was first domesticated thousands of years ago. In North America and Europe, Kava is now promoted for a variety of uses. French company L'Oreal - a global giant with US $10 billion a year in sales - patented the use of Kava to reduce hair loss and stimulate hair growth.

***Ayahuasca (Banisteriopsis caapi Mort.)***

For generations, Shamans of indigenous tribes throughout the Amazon basin have processed the bark of B. caapi Mort. to produce a ceremonial drink known as “Ayahuasca”. The Shamans use Ayahuasca (which means “wine of the soul”) in religious and healing ceremonies to diagnose and treat illness, meet with spirits, and divine the future.

American, Loren Miller obtained US Plant Patent (no.5, 751 issued in 1986), granting him rights over an alleged variety of B. caapi Mort. which he had collected from a domestic garden in Amazon and had called “Da Vine”, and was analyzing for potential medicinal properties. The patent claimed that Da Vine represented a new and distinct variety of B. caapi Mort., primarily because of the flower colour.

The Coordinating Body of Indigenous Organisations of the Amazon Basin (COICA), which represents more than 400 indigenous tribes in the Amazon region, along with others, protested about a wrong patent that was given on a plant species. They protested that Ayahuasca had been known to natives of the Amazon rainforest and it is

used in traditional medicine and cultivated for that purpose for generations, so Miller could not have discovered it , and should not have been granted such rights, which in effect, appropriated indigenous traditional knowledge. On reexamination, USPTO revoked this patent on 3rd November 1999. However, the inventor was able to convince the USPTO on 17th April 2001, and the original claims were reconfirmed and the patent rights restored to the innovator.

***Quinoa (Chenopodium quinoa Willd.)***

Quinoa is a staple food crop for millions in the Andes, especially Quechua and Aymara people who have bred a multitude of quinoa varieties. One traditional quinoa variety, Apelawa, is the subject of US patent 5,304,718 held by two professors from Colorado State University who claim the variety's male sterile cytoplasm is key to developing hybrid quinoa. The patent claims any quinoa crossed with male sterile Apelawa plants.

***Hoodia (Hoodia gordonii (Masson) Sweet ex Decne)***

For thousands of years, African tribesmen have eaten the Hoodia cactus to stave off hunger and thirst on long hunting trips. The Kung bushmen, San who live around the Kalahari desert in southern Africa used to cut off a stem of the cactus about the size of a cucumber and munch it.

In 1995, South African Council of Scientific & Industrial Research (CSIR) patented Hoodia's appetite-suppressing element (P57) and hence, its potential cure for obesity. In 1997 they licensed P57 to British Biotech Company, Phytopharm. In 1998, Pfizer acquired the rights to develop and market P57 as a potential slimming drug and cure for obesity (a market worth more than £ 6 billion), from Phytopharm for $ 32 million. The San people eventually learned of this exploitation of their traditional knowledge, and in June 2001, launched legal action against South African CSIR and the pharmaceutical industry on grounds of bio-piracy. They claimed that their traditional knowledge has been stolen, and the South African CSIR had failed to comply with the rules of the Convention on Biodiversity, which requires the prior informed consent of all stakeholders, including the original discoverers and users.

Phytopharm conducted extensive enquiries but were unable to find any of the knowledge holders. The remaining San were apparently at the time living in a tented camp 1500 miles away from their tribal lands. The South African CSIR claimed that they have planned to inform the San of the research and share the benefits, but wanted to make sure that the drug proved successful.

The two sides entered into negotiations for a benefit-sharing agreement, despite complications regarding who should be compensated: the person who originally

shared the information, their descendants, the tribe, or the entire country. The San are nomads spread across four countries.

However, in March 2002, a landmark agreement was reached in which the San were to receive a share of any future royalties. Since then however, hoodia has made entry into the gray market and to what extent the San community is aided from the benefit sharing remains to be seen.

***Other examples***

Phyllanthus amarus Schum.et Thonn. is used for Ayurvedic treatment for jaundice. A US patent has been taken for use against Hepatitis B. The plant Piper nigrum Linn. is used for Ayurvedic treatment for vitiligo (a skin pigmentation disorder). A patent has been taken in UK for the application of a molecule from Piper nigrum Linn. for use in treatment of vitiligo.

The appropriation of elements of this collective knowledge of societies into proprietary knowledge for the commercial profit of a few is a major concern. Urgent action is needed to protect these fragile knowledge systems through national policies and international understanding linked to IPR, while providing its development and proper use for the benefit of its holders. What is needed is a particular focus on community knowledge and community innovation, enterprise and investment is particularly important.

The local communities or individuals do not have the knowledge or the means to safeguard their property in a system, which has its origin in very different cultural values and attitudes. The communities have a storehouse of knowledge about their flora and fauna, their habits, their habitats, their seasonal behaviour and the like-and it is only logical and in consonance with natural justice that they are given a greater say as a matter of right in all matters regarding the study, extraction and commercialization of the biodiversity. A policy that does not obstruct the advancement of knowledge, and provides for valid and sustainable use and adequate intellectual property protection with just benefit sharing is what is needed.

**TKDL Outcomes against Bio-Piracy**

Beginning July 2009, TKDL team has identified several patent applications at international patent offices like United States Patent and Trademark Office(USPTO), European Patent Office (EPO), Canadian Intellectual Property Office (CIPO), German Patent and Trade Mark Office (DPMA), United Kingdom Patent & Trademark Office

(UKPTO), IP Australia and Controller General of Patents Designs and Trademarks (CGPDTM, India), with respect to Indian Systems of Medicine. In these cases, prior-art evidences from Traditional Knowledge Digital library have been filed at pre-grant stage under relevant provisions at these patent Offices. In a number of cases like those listed below, patent applications have either been withdrawn/cancelled/declared dead/terminated or have had claims amended by applicants or rejected by the Examiner(s) on the basis of TKDL submissions.

| S.No | Patent Office | No. of Cases |
|---|---|---|
| 1. | European Patent Office (EPO) | 154 |
| 2. | United States Patent and Trademark Office (USPTO) | 34 |
| 3. | Controller General of Patents Designs and Trademarks (CGPDTM) | 134 |
| 4. | Canadian Intellectual Property Office (CIPO) | 37 |
| 5. | IP Australia (AIPO) | 15 |
| 6. | United Kingdom Patent & Trademark Office (UKPTO) | 1 |
| | **Total** | **375** |

**European Patent Office (EPO)**

After conclusion of the access agreement with the European Patent Office, citation of TKDL references as prior art have led to significant strides towards achieving the goal of preventing misappropriation of Indian Traditional Knowledge.

**1. Refusal / Setting aside of Intention to grant patent**

**2. Patent Applications Withdrawn / Deemed to be Withdrawn**

## 3. Amendment / Modification of Claims by Applicants due to TKDL Prior Art Evidence

### 1. Refusal / Setting aside of Intention to grant patent

| S.No | Pub. No. | Title | Applicant | Date of Filing | Date of TKDL Evidence | Refusal/Setting aside of Intention to grant patent | Current Status |
|---|---|---|---|---|---|---|---|
| 1. | EP1747786 | Natural product in cream with anti-vitiligo therapeutic properties. | Perdix Eurogroup, S.L., Spain | 24-Jul-06 | 08-Jul-09 | 27-Jul-09 | Application closed on 11-Oct-11 |
| 2. | EP1660007 | Compositions for Diabetes treatment and Prophylaxis | Ayurvedic-Life International, LLC, P.O. Box 10, Neenah, WI 54957 / US | 11-Aug-04 | ----- | 27-Jun-12 | Application closed on 10-Oct-12 |
| 3. | EP2464363 | Natural extract from whole Banana fruit | M/S Medasani, Munisekhar/ India | 11-Aug-10 | 23-May-14 | 20-Mar-15 | Application closed on 07-Jul-15 |
| 4. | EP2435057 | Compositions and methods for modulating lipid composition | New Chapter, Inc. / US | 28-May-10 | 20-Mar-13 | 17-Jun-15 | Application closed on 28-Sep-15 |

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| 5. | EP2473057 | PICRORHIZA KURROA EXTRACT FOR PREVENTION, ELIMINATION AND TREATMENT OF INFECTION DISEASES | MEDASANI MUNISEKHAR [IN] | 02-Sep-10 | 08-May-14 | 05-Feb-19 | Application closed on 20-May-2019 |

**2. Patent Applications Withdrawn / Deemed to be Withdrawn**

| S. No | Pub. No. | Title | Applicant | Date of Filing | Date of TKDL Evidences | Date of Withdrawal / Deemed to be Withdrawn | Current Status |
|---|---|---|---|---|---|---|---|
| 1. | EP1607006 | Functional berry composition. | UNILEVER NV, Netherland | 18-Jun-04 | 17-Jul-09 | 04-Aug-09 | Application closed on 13-Nov-09 |
| 2. | EP2044850 | Method for altering the metabolism characteristic of food products. | Clara's ApS, Denmark | 19-Sep-07 | 25-Aug-09 | 30-Oct-09 | Application closed on 24-Nov-09 |

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| 3. | EP1889638 | Medicaments and food for treatment or prevention of obesity and/or diabetes containing cicer arietinum extract. | Jumpsun Bio-Medicine (Shanghai) Co. Ltd, China | 06-Mar-06 | 11-Jun-09 | 20-Nov-09 | Application closed on 02-Mar-10 |
| 4. | EP1750809 | Citrus Fruit Skin extract for Angiogenesis promotion | Industrial Research Limited and Otago Innovation Limited / New Zealand | 29-Apr-05 | ----- | 20-Nov-09 | Application closed on 18-Mar-10 |
| 5. | EP1807098 | Herbal compositions for treatment of diabetes. | Amcod Limited, Mombasa, Kenya | 13-Sep-05 | 01-Jul-09 | 24-Nov-09 | Application closed on 08-Mar-10 |
| 6. | EP1967197 | Use of preparations, purifications and extracts of aloe. | Cognis IP Management GmbH, Germany | 09-Mar-07 | 20-Jul-09 | 27-Nov-09 | Application closed on 10-Mar-10 |
| 7. | EP2065031 | Skin treatment composition. | Evonik Goldschmidt GmbH,Germany | 30-Nov-07 | 07-Sep-09 | 27-Jan-10 | Application closed on 06-May-10 |
| 8. | EP1906980 | Method of treatment or managment of Stress. | Natreon Inc. 2-D Janine Place New Brunswick, NJ 08901/United States | 27-Jul-06 | 06-Jul-09 | 25-Mar-10 | Application closed on 13-Jul-10 |

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| 9. | EP1660106 | Biotherapetutics for Mitigation of health disorders from Terminalia Arjuna. | Avesthagen Limited Unit 3, Discoverer, 9th Floor International Tech Park Whitefield Road Bangalore 560 066 / India | 15-Aug-03 | 08-Jul-09 | 06-Apr-10 | Application closed on 19-Jul-10 |
| 10. | EP1825845 | Cosmetic herbal compositions. | Jan Marini Skin Research Inc. 6951 Via del Oro San Jose, California 95119/United States | 22-Feb-07 | 02-Jul-09 | 08-Apr-10 | Application closed on 20-Jul-10 |
| 11. | EP2015761 | Methods and composition for treating Sore Throat. | Naveh Pharma (1996) Ltd. P.O. Box 8139 42505 Netanya/Israel2009/04 | 29-Mar-07 | 13-Aug-09 | 15-Apr-10 | Application closed on 30-Jul-10 |
| 12. | EP1937231 | Pharmaceutical compositions for the treatment of Chronic Obstructive Pulmonary Disease. | GW Pharma Limited Porton Down Science Park Salisbury, Wiltshire SP4 OJR/Great Britain | 11-Oct-06 | 21-May-10 | 24-Jun-10 | Application closed on 13-Jul-10 |
| 13. | EP2133089 | Compositions for the treatment of disorders of the upper respiratory tract and influenza syndromes. | Indena S.p.A. Viale Ortles, 12 20132 Milano / Italy[2009/51] | 12-Jun-08 | 07-May-10 | 26-Jul-10 | Application closed on 11-Nov-10 |
| 14. | EP2133080 | Compounds containing equol. | Haelan Schweiz GmbH Schützenstrasse 188808 Pfäffikon | 13-Jun-08 | 12-Jul-10 | 26-Jul-10 | Application closed |

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|---|---|---|---|---|---|---|---|
| | | | Switzerland [2009/51] | | | | on 29-Nov-10 |
| 15. | EP2070545 | Oral compositions for the prevention and treatment of inflammatory disorders of the colon. | Bios Line S.p.a. Viale Finladia 4 35020 Ponte S. Nicolo (PD) / Italy[2009/25] | 10-Dec-08 | 14-Jun-10 | 29-Jul-10 | Application closed on 09-Nov-10 |
| 16. | EP2101800 | Extracts from the skin of fruits of plants from genus vitis, compositions containing the same and a process for its manufacture. | Aché Laboratórios Farmacêuticos S.A. Rodovia Presidente Dutra Km 222,2 Porto da Igreja 07034-904 Guarulhos- SP /Brazil [2009/39] | 14-Dec-07 | 01-Jul-10 | 30-Jul-10 | Application closed on 16-Dec-10 |
| 17. | EP1949889 | Fibroblast activator, method for activation of fibroblast, collagen synthesis promoter, method for promotion of collagen synthesis, skin aging-preventing agent, and method for prevention of aging of the skin. | Mercian corporation 5-8, Kyobashi 1-chome Chuo-ku, Tokyo 104-8305 / Japan[2008/31] | 17-Oct-06 | 07-Jun-10 | 04-Aug-10 | Application closed on 11-Aug-10 |
| 18. | EP1709995 | Asthma/allergy therapy using nigella sativa. | Al-Jassim, Rawaa 2578 River Wood Drive Napperville, Illinois 60565 / United States,Great Britain,Germany,Netherlands and Qatar | 02-Mar-00 | 18-Jun-09 | 18-Aug-10 | Application closed on 30-Nov-10 |

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|---|---|---|---|---|---|---|---|
| 19. | EP1958641 | Treatment and prevention of inflammation. | Bionature E.A. Limited 1 Poseidon 2406 Egomi, Nicosia/ Cyprus [2008/34] | 16-Feb-07 | 23-Jun-09 | 22-Sep-10 | Application closed on 23-Sep-10 |
| 20. | EP1729593 | Cysteine Protease from Ginger | Natbio Pty Ltd. 41/8 Goodwin Street Kangaroo Point, QLD 4169 / Australia [2006/50] | 23-Feb-05 | 30-Oct-09 | 11-Oct-10 | Application closed on 20-Jan-11 |
| 21. | EP1971354 | Composition comprising liquiritigenin for preventing and treating liver disease. | Seoul National University Industry Foundation San 4-2, Bongcheon-dong, Gwanak-gu Seoul 151-818 / South Korea [2008/39] | 05-Jan-07 | 04-May-10 | 21-Oct-10 | Application closed on 27-Oct-10 |
| 22. | EP2089505 | Reduced-hangover alcoholic beverage. | Morning-After Herbal Infusion Corporation 180 Boul. rene-Levesque East Suite 208 Monreal, QC H2X 1N6 / Canada [2009/34] | 08-Nov-07 | 14-Jun-10 | 29-Oct-10 | Application closed on 09-Feb-11 |
| 23. | EP1942917 | Compositions and methods for Use of juice organic, juice based skin care products. | Juice Beauty 711 Grand Avenue, Suite 290 San Rafael, CA 94901 / US | 30-Oct-06 | 02-Jul-10 | 04-Nov-10 | Application closed on 15-Feb-11 |
| 24. | EP2175848 | Therapeutic uses of Cannabigerol. | GW Pharma Limited Porton Down Science Park Salisbury Wiltshire | 25-Jun-08 | 30-Jul-10 | 11-Nov-10 | Application closed on 24-Feb-11 |

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| | | | SP4 0JR / Great Britain [2010/16] | | | | |
| 25. | EP2218455 | Dolichos biflorus extract for use in therapeutic skin treatment. | Cognis IP Management GmbH Henkelstrasse 67 40589 Dusseldorf / Germany[2010/33] | 07-Feb-09 | 30-Sep-10 | 18-Nov-10 | Application closed on 01-Dec-10 |
| 26. | EP2014295 | Topical compositions for the prevention and treatment of inflammatory and/or infective conditions of the genital area. | Velleja Research SRL Via Natta, 28 29010 Pontenure (PC) / Italy [2009/03] | 28-May-08 | 01-Oct-10 | 23-Nov-10 | Application closed on 07-Mar-11 |
| 27. | EP2008661 | Formulation based on marigold aloe and centellae. | Spannagel, Lucia Antonia Guemes 235, barrio Los Eucaliptos Villa Carlos Paz Provincia de Cordoba / Argentina[2009/01] | 05-May-08 | 20-May-10 | 05-Jan-11 | Application closed on 14-Apr-11 |
| 28. | EP1759706 | Use of mash of Gentiana root and corresponding agents. | Priebe, Ingrid Thierschstrasse 10 83471 Schonau / Germany[2007/10] | 04-Sep-06 | 25-Jun-10 | 15-Feb-11 | Application closed on 25-May-11 |
| 29. | EP2167072 | Use of Oleocanthal for Treatment of Cutaneous Inflammation. | B.C. DEVELOPMENT S.A. route de France 17 / CP 18 2926 Boncourt / Switzerland,Sprim 2 Square Petrarque 75016 Paris / France | 04-Jul-08 | 21-Jul-10 | 09-Mar-11 | Application closed on 20-Jun-11 |

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| 30. | EP2029150 | Extract of Herbal and the composition containing the same. | DONG-A PHARM. CO., LTD. 252, Yongdu-dong Dong-daemun-ku Seoul 130-823 / Republic Of Korea | 27-Feb-07 | 04-Jun-10 | 09-Jun-11 | Application closed on 20-Sep-11 |
| 31. | EP2263481 | Green tea extracts of improved bioavailability. | Nestec S.A. Avenue Nestle 55 1800 Vevey / Switzerland | 29-May-09 | 07-Jun-11 | 22-Jun-11 | Application closed on 04-Jul-11 |
| 32. | EP1553851 | Cosmetic composition for preventing and/or correcting the functional disorders of the pilo-sebaceous unit of mammals. | L'Oreal 14, rue Royale 75008 Paris / France Nestec S.A. Avenue Nestle 55 1800 Vevey / Switzerland | 16-Dec-03 | 04-Jan-11 | 22-Jun-11 | Application closed on 30-Oct-11 |
| 33. | EP1755402 | Compositions for inhalation therapy and methods of use. | Tower Laboratories, Ltd. 8 Industrial Park Road Centerbrook, CT 06409 / United States | 06-May-05 | 06-May-11 | 30-Jun-11 | Application closed on 24-Oct-11 |
| 34. | EP1140123 | Use of tropical root crops in effective intervention strategies for treating difficult and complex cases and chronic diseases. | Slimak, Karen M. P.O. Box 2444 Springfield, VA 22152 / United States | 13-Nov-00 | 14-Dec-10 | 05-Jul-11 | Application closed on 19-Oct-11 |

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| 35. | EP2124983 | A HERBAL PREPARATION EFFECTIVE IN THE PREVENTION AND MANAGEMENT OF RHEUMATOID ARTHRITIS AND ASSOCIATED COMPLAINTS | SWAMINATHAN S [IN] | 18-Jan-08 | 07-May-10 | 08-Jul-11 | Application closed on 24-Oct-2011 |
| 36. | EP2146739 | Methods of immune or hematological enhancement, inhibiting tumour formation or growth, and treating or preventing cancer, cancer symptoms, or the symptoms of cancer treatments. | Fonterra Co-Operative Group Limited 9 Princes Street Auckland / New Zealand | 14-May-08 | 12-Jul-10 | 15-Jul-11 | Application closed on 25-Oct-11 |
| 37. | EP1925311 | Use of a plant extract or plant juice | BIOPROGRESS TECHNOLOGY LIMITED Units 15-17 Cambridge Science Park Milton Road Cambridge, CB4 0FQ / Great Britain | 15-Nov-06 | 08-Jun-10 | 19-Aug-11 | Application closed on 29-Nov-11 |
| 38. | EP2152284 | A SYNERGISTIC AYURVEDIC / FUNCTIONAL FOOD BIOACTIVE COMPOSITION [CINCATA] | Avesthagen Limited Discoverer' 9th Floor International Tech Park Whitefield Road Bangalore Karnataka 560 066 / India | 29-Jun-07 | 30-Jun-10 | 23-Sep-11 | Application closed on 03-Jan-12 |

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| 39. | EP1609476 | Composition for treating Hepatitis C | Original Image Co., Ltd. 3-21-2 Motohama-cho Naka-ku Yokohama-shi Kanagawa 231-0004 / Japan | 04-Mar-04 | 17-Jul-09 | 29-Sep-11 | Application closed on 11-Jan-12 |
| 40. | EP1991241 | compositions and methods for the induction and maintenance of quality sleep | Iomedix Sleep International SRL The Grove 21 Pine Road Belleville 11113 Saint Michael / Barbados | 14-Jul-06 | 23-Apr-10 | 30-Sep-11 | Application closed on 10-Jan-12 |
| 41. | EP1855701 | Metal Chelator | Georgiou, George J. Panayia Aimatousa 300 Aradippou 7101, Larncaca / Cyprus | 01-Feb-06 | 05-May-10 | 10-Oct-11 | Application closed on 19-Jan-12 |
| 42. | EP1906982 | Plant extracts and methods and uses therefore | Avesthagen Limited Unit 3, Discoverer, 9th Floor International Tech Park Whitefield Road Bangalore 560 066 / India | 23-Feb-05 | 19-May-10 | 17-Oct-11 | Application closed on 26-Jan-12 |
| 43. | EP2223616 | Food supplement preparation with an active ingredient mixture | PM-International AG 17, rue des Gaulois 1618 Luxembourg | 13-Feb-09 | 20-Oct-10 | 25-Oct-11 | Application closed on 28-Oct-11 |
| 44. | EP1998758 | Spray composition for topical use for treating and/or preventing herpes simplex labial infections | Istituto Farmacoterapico Italiano S.P.A. Via Paolo Frisi 21/23 00197 Rome / Italy | 21-Mar-03 | 18-May-10 | 09-Nov-11 | Application closed on 20-Feb-12 |

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| 45. | EP1718143 | Agents for Sequestering Serum Aging factors and uses therefore | Nu Skin International, Inc. 75 West Center Street Provo, UT 84601 / United States | 04-Feb-05 | 25-Jun-09 | 06-Dec-11 | Application closed on 19-Mar-12 |
| 46. | EP2033650 | Inhibitor of Expression Of Nuclear Transcription Factor Ap-1,and Pharmaceutical product and product using the inhibitor | ARKRAY, Inc. 57 Nishiaketa-cho Higashikujo Minami-ku Kyoto-shi, Kyoto 601-8045 / Japan | 19-Jun-07 | 26-May-10 | 18-Jan-12 | Application closed on 27-Apr-12 |
| 47. | EP2251032 | Lactoferrin and brain health and protection in adults | Nestec S.A., Avenue Nestle 55, 1800 Vevey/ Switzerland | 12-May-09 | 27-Oct-11 | 24-Jan-12 | Application closed on 03-Apr-12 |
| 48. | EP2251029 | Lactoferrin and gut neuronal health in adults and/or elderly | Nestec S.A. Avenue Nestle 55 1800 Vevey/ Switzerland | 12-May-09 | 30-Sep-11 | 24-Jan-12 | Application closed on 03-Apr-12 |
| 49. | EP1812028 | Herbal composition phy906 and its use in Chemotherapy. | Yale University Two Whitney Avenue New Haven, CT 06511 / United States | 09-Nov-05 | 21-May-10 | 23-Mar-12 | Application closed on 04-Jul-12 |
| 50. | EP2371374 | Soluble fiber from Musa spp. for treating gastroenteritis or diarrhea | PROVEXIS (IBD) LIMITED Thames Court 1 Victoria Street Windsor | 10-Feb-04 | 04-May-12 | 16-May-12 | Application closed on 31-Aug-12 |

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| | | | Berkshire SL4 1YB / United Kingdom | | | | |
| 51. | EP1498132 | Compositions for preventing or treating Pollenosis, Allergic Nephritis, Atopic Dermatitits, Asthma or Urticaria | Original Image Co., Ltd., 21-2 Motohama-cho 3-chome Naka-ku Yokohama-shi, Kanagawa 231-0004/ JAPAN | 21-Apr-03 | 17-Jan-11 | 29-May-12 | Application closed on 11-Sep-12 |
| 52. | EP1945237 | Use of Extracts of Myrtle and other Mediterranean plant species, as Antimycotic agent towards Yeast and Yeast-like Microorganisms | Romani, Annalisa, Via Delle Lame 4, 51031 Agliana / ITALY | 17-Oct-06 | 21-Apr-10 | 06-Jun-12 | Application closed on 17-Sep-12 |
| 53. | EP1863498 | Composition Comprising Isoorientin for Suppressing Histamine | Unigen, Inc. 200-1, Songjeong-ri Byeongcheon-myeon, Cheonan-si Chungcheongnamdo 330-863 / South Korea | 17-Mar-06 | 03-May-11 | 11-Jun-12 | Application closed on 20-Sep-12 |
| 54. | EP2094091 | Antimicrobial Composition | Nature Therapeutics Limited, 4 Mill Fields Bassingham Lincoln, Lincolnshire LN5 9NP / United Kingdom | 06-Dec-07 | 09-Jun-10 | 04-Jul-12 | Application closed on 03-Aug-12 |
| 55. | | Methods of treating Epiphora | Riolan Technologies, Inc., 8575 Prestwick | 01-No | 05-Nov-09 | 10-Jul-12 | Application closed |

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| | EP2086560 | | Drive, La Jolla, CA 92037 / United States | v-07 | | | on 23-Oct-12 |
| 56. | EP2251024 | Plant-Origin drug for preventing or improving Hyperuricemia | Kaneka Corporation, 2-4, Nakanoshima 3-chome Kita-ku, Osaka-shi, Osaka 530-8288 / Japan | 21-Jan-09 | 05-Jan-12 | 03-Aug-12 | Application closed on 13-Nov-12 |
| 57. | EP2163252 | Composition containing Licorice-derived Polyphenol | Kaneka Corporation, 2-4, Nakanoshima 3-chome Kita-ku, Osaka-shi, Osaka 530-8288 / Japan | 16-May-08 | 09-Aug-11 | 28-Aug-12 | Application closed on 07-Dec-12 |
| 58. | EP2144591 | Personal care compositions comprising an Antimicrobial Blend of essential oils or constituents thereof | The Procter & Gamble Company, One Procter & Gamble Plaza, Cincinnati, OH 45202 / United States | 15-Apr-08 | 08-Jun-11 | 31-Aug-12 | Application closed on 12-Dec-12 |
| 59. | EP1841320 | Methods and pharmaceutical compositions useful for treating psoriasis | S.U.L.V.E. Ltd., P.O. Box 899, Business Center, 25147 Kfar-vradim / Israel | 12-Jan-06 | 21-Jul-10 | 06-Sep-12 | Application closed on 18-Dec-12 |
| 60. | EP2227247 | Anticancer composition comprising plant stem cell line derived from Taxus Cambium or Procambium | Unhwa Corporation, 865-5 Hoseongdong 1-gaDeokjin-guJeonju-si, Jeollabuk-do 561-211 / South Korea | 10-Oct-08 | 05-Nov-10 | 20-Sep-12 (Official notification of EPO on this case is | Application closed on 20-Sep-13 |

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| | | | | | | 07-Jun-2013) | |
| 61. | EP2139504 | Standardized Bioactive Herbal Extracts | Ranbaxy Laboratories Limited., Plot No. 90, Sector-32 Gurgaon, Haryana 122001, Delhi / INDIA | 24-Mar-08 | 15-Apr-10 | 07-Nov-12 | Application closed on 27-Feb-13 |
| 62. | EP2377543 | Ophthalmic, pharmaceutical and other healthcare preparations with naturally ocurring plant compounds, extracts and derivatives | Natural Disinfectant Technologies., Landhuis Joonchi, P.O. Box 837, Curacao / NETH. ANTILLES | 04-Apr-03 | 18-Jun-12 | 26-Nov-12 | Application closed on 17-Apr-13 |
| 63. | EP2157978 | MC-1 R, MC-2 R, and MU Opioid Receptors Modulation | BASF Beauty Care Solutions France SAS, France | 06-Jun-08 | 02-Aug-10 | 27-Nov-12 | Application closed on 11-Mar-13 |
| 64. | EP2144621 | Guava Extract | OMNICA GMBH, Plan 5, 20095 Hamburg / Germany | 22-Apr-08 | 21-May-10 | 07-Dec-12 | Application closed on 20-Mar-13 |
| 65. | EP2046357 | Antioxidant compositions comprising extracts of Myrtle and Rosemary | Nuraging Biotech S.r.l., Localita Piscinamanna, edif.5, 09010 Pula (CA) / Italy | 24-Jul-07 | 01-Jun-10 | 01-Feb-13 | Application closed on 13-May-13 |

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| 66. | EP2323501 | Reduced sesame seed derived pigments | OMNICA GMBH, Plan 5, 20095 Hamburg / Germany | 28-Jul-09 | 27-Jul-11 | 11-Mar-13 | Application closed on 27-Jun-13 |
| 67. | EP2349305 | Phytochemical Compositions and Methods for Activating Amp-Kinase | Metaproteomics LLC / United States | 04-Nov-09 | 24-Jan-12 | 09-Apr-13 | Application closed on 25-Jul-13 |
| 68. | EP2060621 | Wheat-germ oil concentrate, a method for the production thereof, a method for producing wheat-germ oil and a medicinal and prophylactic composition based thereon and used for treating sexual dysfunctions | Otkrytoe Aktsionernoe Obschestvo Zavod Ekologicheskoy Tekhniki, Moscow 115114 / Russia | 27-Nov-06 | 09-Jun-10 | 03-May-13 | Application closed on 22-Aug-13 |
| 69. | EP1825861 | Anti-inflammatory extract and agent and method for the production thereof | Otkrytoe Aktsionernoe Obschestvo Zavod Ekologicheskoy Tekhniki I Ekopitaniya 'Diod' / Russia | 15-Nov-05 | 15-Jun-10 | 09-Jul-13 | Application closed on 09-Oct-13 |
| 70. | EP2094094 | Composition comprising a milled cereal product | F. Coy, Johannes F. , Mestemacher GmbH / Germany | 07-Dec-07 | 21-May-10 | 07-Aug-13 | Application closed on 13-Nov-13 |

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| 71. | EP1998727 | Herbal composition for treatment of infections caused by Dermatophytes | Piramal Enterprises Limited / India | 27-Mar-07 | ----- | 22-Aug-13 | Application closed on 22-Nov-13 |
| 72. | EP2124636 | Novel use of (-)-Epigallocatechin Gallate | DSM IP Assets B.V., Het Overloon 1, 6411 TE Heerlen / Netherlands | 17-Jan-08 | 07-Dec-12 | 15-Nov-13 | Application closed on 18-Feb-14 |
| 73. | EP2204176 | Nutritional Composition | Societe des Produits Nestle S.A., P.O.Box 353, 1800 Vevey / Switzerland | 17-Jul-01 | 02-Sep-11 | 18-Nov-13 | Application closed on 18-Feb-14 |
| 74. | EP2089044 | Anti-obesity product and it's method of preparation | Chongquing institute of Ecological Materia Medica Co Limited / China and Phynova Limited/ Great Britain | 09-Jul-07 | 30-Jun-10 | 04-Dec-13 | Application closed on 06-Mar-14 |
| 75. | EP2429558 | MEDICINE FOR DENTAL DISEASES PROPHYLAXIS | OBSHCHESTVO S OGRANICHENNOJ OTVETSTVENNOSTYU WDS [RU] | 23-Mar-10 | 08-Jan-13 | 10-Jan-14 | Application closed on 09-April-2014 |
| 76. | EP1993522 | Resveratrol and/or Grape leaf extract as i.a. Endurance Improver, Anti-aging agent, Muscle strength improver | Kao Corporation 14-10, Nihonbashi-Kayabacho, 1-chome Chuo-ku Tokyo 103-8210 / Japan | 25-Oct-06 | 24-Jun-10 | 21-Feb-14 | Application closed on 23-May-14 |

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| 77. | EP2269598 | Curcuminoid compositions exhibiting synergistic inhibition of the expression and/or activity of cyclooxygenase-2 | Metaproteomics, LLC / US | 17-Jul-02 | 07-Apr-11 | 17-Mar-14 | Application closed on 18-Jul-14 |
| 78. | EP2293689 | Food product | Mars, Incorporated / US | 28-May-09 | 15-Mar-13 | 30-Apr-14 | Application closed on 04-Aug-14 |
| 79. | EP1901701 | Personal care and medicinal products incorporating bound Organosulfur groups | Ott, David M., 777 Panoramic Way, Berkeley, CA 94704 / US | 24-May-06 | 15-Feb-12 | 15-May-14 | Application closed on 14-Aug-14 |
| 80. | EP1881839 | Compositions of Bakuchiol and methods of making the same | Unigen, Inc. / US | 09-May-06 | 03-Aug-09 | 01-Aug-14 | Application closed on 12-Nov-14 |
| 81. | EP2419508 | Method for the induction of a reward response by modulation of dopaminergic systems in the central nervous system | Somalabs, Inc., 40 Allen Road, South Burlington, VT 05403 / US | 16-Apr-10 | 20-Mar-13 | 13-Aug-14 | Application closed on 12-Nov-14 |
| 82. | | Compositions that treat or inhibit pathological | Metaproteomics, LLC / US | 20-Oct-03 | 28-Dec-10 | 10-Oct-14 | Application closed |

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| | EP1558271 | conditions associated with inflammatory response | | | | | on 09-Jan-15 |
| 83. | EP2266586 | Compositions and method for alleviating inflammation and oxidative stress in a mammal | Lifeline Nutraceuticals Corporation 6400 South Fiddler's Green Circle, Suite 1970 Englewood, CO 80111 / United States | 23-Mar-05 | 15-Mar-11 | 15-Dec-14 | Application closed on 18-Mar-15 |
| 84. | EP2243383 | A method and composition for nutritionally improving glucose control and insulin action | Nestec S.A. / Switzerland | 04-Apr-06 | 26-May-14 | 05-Jan-15 | Application closed on 08-Jan-15 |
| 85. | EP2361602 | A hair building solid agent | M/S Pangaea Laboratories Limited / Great Britain | 11-Feb-11 | 13-Jan-14 | 21-Jan-15 | Application closed on 01-Oct-15 |
| 86. | EP2305280 | BCL-2 PROTEIN EXPRESSOR, APOPTOSIS INHIBITOR AND PREVENTIVE FOR UV-DNA DAMAGE IN EPIDERMAL CELLS | NISHIHARA CO LTD [JP] | 23-May-08 | 14-Jun-11 | 02-Feb-15 | Application closed on 22-July-2015 |
| 87. | EP2689806 | Oral compositions containing extracts of myristica | Colgate-Palmolive Company / United States of America | 01-Dec-10 | 03-Jun-14 | 17-Mar-15 | Application closed |

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| | | fragrans and related methods | | | | | on 22-Jun-15 |
| 88. | EP2543381 | IMMUNOGLOBULIN A SECRETION PROMOTER | LOTTE CO LTD [JP] | 03-Mar-11 | 11-Sep-13 | 24-Mar-15 | Application closed on 08-July-2015 |
| 89. | EP2328598 | Novel compositions containing isolated Tetrameric type a Proanthocyanadin and methods of use and manufacture | Phenolics, LLC / US | 04-Aug-09 | 04-Sep-13 | 30-Mar-15 | Application closed on 13-Jul-15 |
| 90. | EP1572219 | Efficient method for producing compositions enriched in total phenols | Phenolics, LLC, P.O. Box 2439, 846 San Carlos Avenue, El Granada, CA 94108-2439 / US | 21-Nov-03 | 05-Jan-11 | 02-Apr-15 | Application closed on 02-Jul-15 |
| 91. | EP1941899 | Agent for promoting Glucagon-like Peptide 1 Secretion, food or drink for promoting Glucagon-like Peptide 1 Secretion, agent for inhibiting postprandial increase in blood sugar level and food or drink for inhibiting | Morinaga Milk Industry Co., Ltd., 33-1, Shiba 5-chome, Minato-ku, Tokyo 108-8384 / Japan | 29-Sep-06 | 09-Feb-12 | 16-Apr-15 | Application closed on 22-Jul-15 |

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| | | postprandial increase in blood sugar level | | | | | |
| 92. | EP2452690 | CARBOXYMETHYLARGININE PRODUCTION INHIBITOR AND COLLAGEN DENATURATION INHIBITOR | ARKRAY INC [JP] | 29-Jun-10 | 14-May-14 | 20-May-15 | Application closed on 19-Aug-2015 |
| 93. | EP2192910 | Oral compositions containing botanical extracts | Colgate-Palmolive Company, 300 Park Avenue, New York, NY 10022/ United States of America | 29-Sep-08 | 06-May-11 | 12-Jun-15 | Application closed on 11-Sep-15 |
| 94. | EP2415469 | Anti-resorptive and bone building dietary supplements and methods of use | Krempin, David W. , 30150 Corte Cantera, Temecula, CA 92591 / US | 24-Oct-07 | ----- | 16-Jun-15 | Application closed on 21-Sep-15 |
| 95. | EP2367526 | Compositions and methods for alleviating hyposalivation and for providing oral comfort | VDF Futureceuticals, Inc., 819 Dixie Highway, Momence, IL 60954 / United States of America | 13-Nov-09 | 21-May-12 | 26-Jun-15 | Application closed on 07-Oct-15 |
| 96. | EP1962865 | ANTI-GASTRITIS AND ANTI-ULCER AGENT CONTAINING MOMORDICAE SEMEN EXTRACT AND MOMORDICA SAPONIN I | SK CHEMICALS CO LTD | 20-Dec-06 | 20-Mar-12 | 24-Jul-15 | Application closed on 29-Oct-2015 |

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| | | ISOLATED FROM THE SAME | | | | | |
| 97. | EP2099527 | AN ORAL HYGIENE COMPOSITION COMPRISING MYRTLE | MARS INC [US] | 27-Nov-07 | 20-May-14 | 29-Jul-15 | Application closed on 28-Oct-2015 |
| 98. | EP2222319 | TOPICAL DRUGS FOR USE IN ANTIFUNGAL THERAPY | BAYER CONSUMER CARE AG | 15-Nov-08 | 11-Oct-10 | 16-Dec-15 | Application closed on 18-Mar-2016 |
| 99. | EP1883416 | Compositions and methods for the prevention and treatment of conditions associated with inflammation | Wellgen, Inc, 63 Dudley Road, New Brunswick NJ 08901-8520 / US | 24-May-06 | 12-Jul-10 | 08-Jan-16 | Application closed on 08-Apr-16 |
| 100. | EP2691072 | Triglyceride Compositions of Plant Origin for Cosmetic Applications Obtained from Olive Oil Deodorization Distillate | M/S LEHVOSS ITALIA s.r.l. / Italy | 29-Mar-12 | 27-Oct-15 | 23-Aug-16 | Application closed on 24-Nov-16 |
| 101. | EP2691074 | COMPOSITION BASED ON CAMELLIA JAPONICA AND POLYGONUM | NUXE LAB [FR] | 29-Mar-12 | 15-Oct-15 | 29-Aug-16 | Application closed on 30- |

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| | | HYDROPIPER FOR PROTECTING THE SKIN | | | | | Nov-2016 |
| 102. | EP2398340 | Oregano Extract for Alertness | M/S DSM IP Assets B.V./ Netherlands | 19-Feb-10 | 25-Feb-13 | 12-Sep-16 | Application closed on 14.12.2016 |
| 103. | EP1675 9411 | TOPICAL REGIONAL NEURO-AFFECTIVE THERAPY WITH CANNABINOIDS | AFGIN PHARMA LLC [US]; AUNG-DIN RONALD M D P A [US] | 02-Mar-16 | 13-May-19 | 13-Mar-20 | Withdrawn |
| 104. | EP1815 3048 | ANTI-FATIGUE AGENT | SUNTORY HOLDINGS LTD [JP] | 12-Mar-08 | ----- | 06-Jan-23 | Withdraw |
| 105. | EP1886 4127 | A NOVEL CANNABIS PRODUCTION PROCESS AND PRODUCTS THEREOF | CURO MEDICAL LTD [IL] | 03-Oct-18 | 26-Sep-21 | 24-May-24 | Withdrawn |

**3. Amendment / Modification of Claims by Applicants due to TKDL Prior Art Evidence**

| S.No | Pub. No. | Title | Applicant | Date of Filing | Date of TKDL Evidence | Date of Examiners Report | Date of Amendment of Claims |
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| 1. * | EP1849473 | Chinese traditional medicine composition for treatment of avian influenza/Bird Flu, method for preparation, and application thereof. | Livzon Pharmaceutical Group Inc., CN, China | 19-Jan-07 | 20-May-10 | 10-Jun-10 | 05-Jul-10 |
| 2. | EP1722805 | Bioactive compositions from Theacea plants and processes for their production and use | Integrated Botanical Technologies, 23 Snowden Avenue, Ossining, New York 10562-3218 / US | 12-Jan-05 | 07-Oct-09 | 29-Jan-10 | 23-Jul-10 |
| 3. | EP1880719 | Composition for prophylaxis or treatment of urinary system infection and method thereof. | CHIH-HSIUNG LIN, Taiwan, Province of China | 06-Jun-07 | 18-Jun-10 | 03-Jan-11 08-Jan-13 | 27-Apr-11 |
| 4. | EP2153831 | Anti-Fatigue Agent and Oral composition each comprising Andrographolide as active ingredient | Suntory Holdings Ltd. / Japan | 30-May-08 | 29-Jul-10 | ----- | 10-Jun-11 |

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| 5. | EP2062883 | Insulin sensitivity improving agent. | Kao Corporation 14-10, Nihonbashi-Kayabacho, 1-chome Chuo-ku Tokyo 103-8210 / Japan | 05-Sep-07 | 30-Sep-10 | 07-Jan-11 | 18-Jul-11 |
| 6. | EP1795200 | Medicine and food/beverage for ameliorating hyperglycemia. | MORINAGA MILK INDUSTRY CO., LTD. 33-1, Shiba 5-chome Minato-ku, Tokyo-to 108-0014 / Japan | 30-Mar-05 | 26-Apr-10 | 15-Jul-10 | 29-Jul-11 |
| 7. | EP2223930 | Eriocitrin-containing material, method for production of the Eriocitrin-containing material, and food, beverage, pharmaceutical preparation and cosmetic each comprising the Eriocitrin-containing material | POKKA CORPORATION, 4-2-29, Sakae Naka-ku Nagoya-shi, Aichi 460-8415 / Japan | 26-Dec-08 | 11-Oct-10 | ----- | 11-Aug-11 |
| 8. | EP2112929 | Catechin as Insulin sensitivity | Kao Corporation 14-10, Nihonbashi- | 28-Nov-07 | 08-Jul-10 | 04-Apr-11 | 26-Aug-11 |

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| | | improving agent | Kayabacho, 1-chome Chuo-ku Tokyo 103-8210 / Japan | | | | |
| 9. | EP2182963 | Herbal Composition on the basis of extracts of Foeniculum Vulgare, Murraya Koenigii and Triphala | "Delhi Institute Of Pharmaceutical Sciences And Research (DIPSAR) Pushp Vihar Sector III New Dehli 110 017 / India" and "Promed Exports Private Limited 210 Ashirwad Commercial Complex D-1 Green Park New Delhi 110 016 / India" | 17-Jun-08 | 11-Jul-11 | ----- | 15-Nov-11 |
| 10. | EP2229403 | Recovery of hydrophobic peptides from oils | University of Saskatchewa Box 5000, RPO University Suite 501-121 Research Drive Saskatoon, Saskatchewan S7N 1K5 / Canada | 22-Dec-08 | 27-Oct-10 | ----- | 10-May-12 |
| 11. | EP2155222 | Extract of Trigonella Foenum-Graecum | BIOTEK HOLDING APS V. Vimmelskaftet 43 1161 | 14-Apr-08 | 18-Jun-10 | 01-Aug-11 | 24-May-12 |

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| | | | Copenhagen K / Denmark | | | | |
| 12. | EP2269621 | Agents for maturing, normalizing or stabilizing blood vessels and wrinkle-preventing and improving agents | Shiseido Company Ltd., 5-5 Ginza 7-chome Chuo-ku, Tokyo 104-8010 / Japan | 31-Mar-09 | 06-Sep-11 | 24-Jan-12 | 20-Aug-12 |
| 13. | EP2319537 | Stabilizer for Lymph Vessel | Shiseido Company Ltd., 5-5 Ginza 7-chome Chuo-ku, Tokyo 104-8010 / Japan | 17-Jun-09 | 11-Aug-11 | 25-Jan-12 | 21-Aug-12 |
| 14. | EP1859834 | Anti-Inflammatory agent | Maruzen Pharmaceuticals Co., Ltd., 14703-10, Mukaihigashi-cho Onomichi-shi, Hiroshima 7220062 / Japan | 15-Mar-05 | 03-Jul-09 | ----- | 10-Sep-12 |
| 15. | EP1955602 | Milk fractions and milk preparations for treating and/or preventing COX-2 mediated diseases | NESTEC SA [CH] NESTEC S.A. | 09-Dec-03 | 09-Feb-12 | 31-May-12 | 24-Sep-12 |

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| 16. | EP2303298 | Compositions comprising extracts from Boswellia Serrata | Ganga Raju Gokaraju, Andhra Pradesh / India | 02-Jun-09 | 11-Jul-11 | 20-Apr-12<br>13-Jan-14<br>23-Feb-15 | 24-Oct-12<br>17-Apr-14 |
| 17. | EP2379095 | Compositions Comprising Lipophilic extracts of Zingiber Officinale and Echinacea Angustifolia for the prevention and treatment of Gastro-Oesophageal Reflux | Indena S.p.A., Via Ortles, 12, 20139 Milano / Italy | 15-Jan-10 | 19-Apr-12 | ----- | 06-Nov-12 |
| 18. | EP2275113 | Skin circulation-improving agent and skin temperature-elevating agent | Shiseido Company, Ltd., 5-5 Ginza 7-chome Chuo-ku, Tokyo 104-8010/ JAPAN | 26-Mar-09 | 20-May-11 | 10-May-12<br>03-Nov-14 | 19-Nov-12 |
| 19. | EP2134316 | Novel cosmetic and/or pharmaceutical compositions and applications thereof | Legacy Healthcare Holding Ltd., 85, St. John Street, Valleta VLT 1165 / Malta | 08-Feb-08 | 07-Jun-10 | 30-Sep-10 | 22-Jan-13 |
| 20. | EP2262503 | Formulations with Sanguinarine, Chelerythrine | INDENA S.p.A., Viale Ortles, 12, 20139 Milano / ITALY | 09-Mar-09 | 28-Jan-11 | ----- | 16-May-13 (Claim 1 amended) |

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| | | or Chelidonine for the treatment of Warts, Verrucas and Psoriatic Plaques | | | | | |
| 21. *** | EP2379092 | Compositions comprising a Lipophilic extract of Zingiber Officinale and an extract of Cynara Scolymus | INDENA S.p.A., Viale Ortles, 12, 20139 Milano / ITALY | 15-Jan-10 | 04-Apr-12 | ----- | 14-Jun-13 |
| 22. | EP2152281 | Composition for treatment of ischemic heart disease, facilitation of blood circulation and angiogenesis, improving skin beauty, improving male sexual function containing ginseng berry extract | Amorepacific Corporation, 181, 2-ga Hangang-ro Yongsan-gu, Seoul 140-777 / Republic of Korea | 28-May-08 | 03-Aug-10 | 08-Mar-13 | 04-Oct-13 |
| 23. | EP1296698 | Therapeutic Agents - II | Peplin Research Pty Ltd, Ground Floor, South Tower, 527 Gregory | 07-Jun-01 | 25-May-11 | 08-Mar-13 | 18-Dec-13 |

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|---|---|---|---|---|---|---|---|
| | | | Terrace, Bowen Hills, QLD 4006 / Australia | | | | |
| 24. | EP2416793 | A plant extract comprising statins and preparation techniques and uses thereof | Nanyang Polytechnic / Singapore | 08-Apr-10 | 12-Nov-12 | 25-Jul-13 | 06-Jun-14 |
| 25. | EP2506724 | Vigna Unguiculata seed extract and compositions containing the same | Laboratoires Expanscience / France | 30-Nov-10 | 16-Jan-13 | 12-Mar-14 | 22-Jul-14 |
| 26. | EP2226071 | Composition for oral administration | Unitika, Ltd. / Japan | 28-Aug-08 | 26-Aug-11 | 26-Mar-14 | 04-Aug-14 |
| 27. | EP2046324 | Treatment and prevention Mucositis by Anthocyanidin derivatives | M/S Indena S.p.A. / Italy | 27-Jul-07 | 29-Jun-10 | ----- | 17-Nov-14 |
| 28. ** | EP1750651 | Composition for improving skin, hair and coat health containing flavanones | Nestec S.A., Avenue Nestle 55, 1800 Vevey / Switzerland | 17-Dec-04 | 11-Jun-12 | 25-Jun-12 16-May-14 | 25-Nov-14 |
| 29. | EP1827362 | Compositions and methods of their use for improving the condition and | Avon Products, Inc. / US | 28-Nov-05 | 18-Jun-14 | 07-Aug-14 | 16-Feb-15 |

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|---|---|---|---|---|---|---|---|
| | | appearance of skin | | | | | |
| 30. | EP2684566 | Pharmaceutical Composition for Preventing and Treating Complications of Diabetes Containing a Homonoia Riparia Extract or a Fraction Thereof As an Active Ingredient | M/S Korea Institute of Oriental Medicine / South Korea | 07-Mar-11 | ----- | 21-Jul-14 | 17-Feb-15 |
| 31. | EP2157966 | MC-1R, MC-2R, AND/OR [mu] OPIOID RECEPTORS STIMULATION | BASF Beauty Care Solutions France SAS / France | 06-Jun-08 | 08-Jul-10 | 10-Apr-12<br>16-Dec-13 | 12-May-15 |
| 32. | EP2379093 | Compositions for the Treatment of Gastroesophageal Reflux Disease (GERD) | M/S Bionap S.R.L./ Italy | 15-Jan-10 | 19-Apr-12 | 28-Apr-15 | 23-Oct-15 |
| 33. | EP09844722 | A FORMULATION FOR RELIEVING OR PREVENTING SYMPTOMS ASSOCIATED WITH URIC ACID CRYSTALS | TRUSCOTT KENT [US]; ABERNATHY SUSAN [US] | 28-Apr-09 | 01-Jun-11 | 30-Jan-13 | 17-Aug-16 |

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|---|---|---|---|---|---|---|---|
| 34. | EP2135606 | Anti-Fatigue Agent | M/S Suntory Holdings Limited / Japan | 12-Mar-08 | 17-Aug-10 | 15-May-14<br>18-Apr-16 | 29-Aug-16 |
| 35. | EP2635683 | HIGH AMYLOSE WHEAT | ARISTA CEREAL TECHNOLOGIES PTY LTD [AU] | 11-Apr-11 | 27-Jan-15 | 08-May-15<br>24-Feb-16 | 05-Sep-16 |
| 36. | EP2528577 | Skin Care Composition for the Treatment of Acne Vulgaris | M/S Reckitt Benckiser Healthcare International Limited / United Kingdom | 19-Jul-10 | 22-Jan-14 | 07-Jun-16 | 30-Sep-16 |
| 37. | EP2941261 | Synergistic Curcuma and Cissus Compositions for Enhancing Physical Performance and Energy Levels | M/S Laila Nutraceuticals / India | 02-Jan-14 | ----- | 09-Nov-16 | 02-Jun-17 |
| 38. | EP1473529 6 | SYNERGISTIC CURCUMA AND CISSUS COMPOSITIONS FOR ENHANCING PHYSICAL PERFORMANCE AND ENERGY LEVELS | LAILA NUTRACEUTICALS [IN] | 02-Jan-14 | ----- | 09-Nov-16 | 02-Jun-17 |

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|---|---|---|---|---|---|---|---|
| 39. | EP3212157 | USE OF LIPOPHILIC SALICYLIC ACID DERIVATIVES | LOREAL [FR]-L'OREAL | 30-Oct-15 | ----- | 07-Mar-16 | 18-Dec-17 |
| 40. | EP3355873 | Use of Cannabinoids in the Treatment of Inflammatory Skin Diseases | M/S GW Pharma Limited/ Great Britain | 29-Sep-16 | 25-Jun-19 | 30-Sep-19 | 24-Jan-20 |
| 41. | EP16201966 | COMPOSITIONS CONTAINING POLYMERIC SULFUR AND USES THEREOF | JOHNSON & JOHNSON CONSUMER INC [US] | 02-Dec-16 | ----- | 22-Oct-18 | 04-Jun-20 |
| 42. | EP14898151 | COMPOSITION FOR IMPROVING SKIN, CONTAINING POMEGRANATE CONCENTRATE AS ACTIVE INGREDIENT | HLSCIENCE CO LTD [KR]; LEE HAE-YEON [KR] | 04-Aug-14 | 18-Jul-18 | 11-Feb-20 | 18-Jan-21 |
| 43. | EP19873131 | COMPOSITION COMPRISING HERBAL EXTRACTS FOR THE TREATMENT OF PSORIASIS | PIMAGO LTD [IL] | 10-Oct-19 | 12-Oct-21 | 27-Jul-22 | 23-Feb-23 |

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|---|---|---|---|---|---|---|---|
| 44. | EP20757830 | TOPICAL FORMULATIONS COMPRISING CANNABIDIOL, METHOD OF PREPARING THE COMPOSITION AND USE THEREOF | HENRIKSEN LONE [DK]; DAUER ROSEMARIE [DE]; DUGUINE MARIA AGUSTINA [AR] | 31-Jul-20 | 04-Oct-22 | 26-Jan-23 | 20-Oct-23 |

*** On basis of Third Party Observations filed by TKDL, EPO had earlier set aside the intention to grant patent to M/s Livzon on 10-Jun-10 for the independent use of Kalamegha (Andrographis) and Pudina (Mint) for treatment of Avian Influenza. M/s Livzon have now accepted the TKDL evidences and have withdrawn their claim on independent use of Kalamegha and Mint for the treatment of Avian Influenza, and accordingly, have modified their earlier claims on 05-Jul-10.**

**** In this case, Description is amended by the applicant.**

***** In this case, both Claims & Description are amended by the applicant.**

**TKDL Outcomes against bio-piracy**

**United States Patent and Trademark Office (USPTO)**

After conclusion of the Access Agreement with the United States Patent and Trademark Office, citation of TKDL references as prior art have led to significant strides towards achieving the goal of preventing misappropriation of Indian Traditional Knowledge.

1. Amendment / Modification of Claims by Applicants/Examiners due to TKDL Prior Art Evidence

2. Claims Rejected by the Examiner due to TKDL Prior Art Evidence

## 1. Amendment / Modification of Claims by Applicants/Examiners due to TKDL Prior Art Evidence

| S.No | Pub No. | Title | Applicant | Date of Filing | Date of TKDL Evidence | Date of Examiners Report | Date of Amendment of Claims | Current Status |
|---|---|---|---|---|---|---|---|---|
| 1. * | 20100203117 | Anti-adipogenic compositions containing piper betle and dolichos biflorus. | Kramer & Amado, P.C. 1725 Duke Street, Suite 240,Alexandria, VA, 22314, United States | 24-Mar-10 | 03-Sep-10 | 15-Jul-11<br>26-Apr-12<br>05-May-15 | 16-Sep-11<br>02-Jul-12 | Application is under progress |
| 2. | 20100203078 | Anti-obese compositions containing holoptelea integrifolia extracts. | LAILA NUTRACEUTICALS, Vijayawada, India | 20-Aug-07 | 10-Sep-10 | 26-Sep-11 | 18-Nov-11 | Application is under progress |
| 3. | 20110097424 | Herbal formulations for the management of chronic ulcers and wounds. | Apptec Inc,C/o Bregen TechnicaL ConsultantS L.L.C., 154 old clinton road | 26-Oct-10 | 23-May-11 | 25-Aug-11<br>20-Apr-12 | 19-Dec-11 | After amendment of claims on India's TK on the basis of |

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|---|---|---|---|---|---|---|---|---|
| | | | flemington nj 08822 | | | | | prior art in TKDL, patent issued |
| 4. | 201100527 37 | Topical skin formulations comprising Botanical Extracts. | Mary Kay Inc.Dallas Texas, United States | 12-Aug-10 | 26-Apr-11 | 22-Mar-12 | 22-Mar-12 | After amendment of claims on India's TK on the basis of prior art in TKDL, patent issued |
| 5. | 201001783 67 | Herbal formulation for Wound Healing | Manish Saxena , New Delhi, India | 25-Mar-10 | ----- | 08-Nov-11 10-Apr-12 11-Jul-14 | 11-Jun-12 10-Jul-12 | After amendment of claims on India's TK on the basis of prior art in TKDL, patent issued |
| 6. | 201001293 96 | Extract of Trigonella Foenum-Graecum. | SUGHRUE MION, PLLC 2100 PENNSYLVANIA AVENUE, N.W.,SUITE 800, WASHINGTO | 17-Nov-09 | 29-Jun-10 | 13-Apr-12 | 13-Jul-12 | Application is under progress |

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| | | | N DC 20037, United States | | | | | |
| 7. | 20110177184 | Bloat therapeutic agent for a Ruminant | Chie Suzuki, Kyo Nagashima, Masami Mochizuki, Japan | 28-Sep-09 | ----- | 02-Feb-12 | 17-Jul-12 | Applicant amended the claims & the application is under progress |
| 8. | 20100203178 | Synergistic Herbal Composition | Suresh Kumar Gupta, New Delhi, India | 22-Apr-10 | ----- | 20-Apr-12 14-Nov-11 | 19-Jul-12 | After amendment of claims on India's TK, application is abandoned |
| 9. | 20100291249 | Pomegranate-derived Products for the Treatment of Skin Sores and Lesions | MDIP LLC, Post Office Box 2630 Montgomery Village, MD, 20886-2630, US | 27-Jul-10 | 28-Dec-10 | 14-Feb-12 23-Oct-12 | 14-Aug-12 | After amendment of claims on India's TK, application is abandoned |
| 10.* | 20110118346 | Novel use of Lignan-type compounds | Hwang; Jae Kwan; Cho; Yu-Mi; Kim; | 17-Oct-08 | 21-Jun-11 | 24-Dec-12 | 24-Jun-13 | After amendment of |

| | | | | | | | | |
|---|---|---|---|---|---|---|---|---|
| | | or extract of Nutmeg or Aril of Nutmeg comprising the same | Gyu Hoi; South Korea | | | 27-Mar-14 | | claims on India's TK on the basis of prior art in TKDL, patent issued |
| 11. | 201201288 08 | Agents from Ficus Hispida for the Amelioration of Metabolic syndrome and related diseases | Laila Nutraceuticals, India | 02-Feb-12 | ----- | 02-Jan-13 08-Jan-13 | 30-Oct-13 | After amendment of claims on India's TK on the basis of prior art in TKDL, patent issued |
| 12. | 201300058 30 | Sandalwood oil and its uses | Santalis Pharmaceuticals Inc., US | 31-Aug-12 | ----- | 18-Oct-13 22-Apr-14 29-May-15 | 21-Jan-14 | Application is under progress |
| 13. | 201201158 91 | Method for the induction of a reward response by modulation of dopaminergic systems in | Somalabs Inc., US | 01-Mar-12 | ----- | 25-Oct-13 23-Apr-14 03-Oct-14 | 25-Feb-14 | Application is under progress |

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|---|---|---|---|---|---|---|---|---|
| | | the central nervous system | | | | | | |
| 14. | 201203297 39 | Compositio n for preventing or treating Poliosis or Vitiligo comprising a Pueraria genus plant extract or Puerarin | Kim; Hyoung-Jun, Korea | 31-Aug-12 | 20-Feb-13 | 20-Mar-14 06-Aug-14 | 19-Jun-14 | After amendment of claims on India's TK on the basis of prior art in TKDL, patent issued |
| 15. | 201600744 53 | A METHOD AND COMPOSITION USING MYRRH, DILL AND PEEL OF POMEGRANATE AS A NATURAL REMEDY FOR CHRONIC WOUNDS | UMM AL-QURA UNIVERSITY , Makkah, (SA) | 25-Sep-14 | ----- | 22-Aug-16 | 22-Nov-16 | After amendment of claims on India's TK, application is abandoned. |
| 16. | 201500503 69 | TERMINALIA CHEBULA AND TERMINALIA BELLIRICA EXTRACTS FOR INHIBITION | Natreon, Inc. New Brunswick | 13-Aug-14 | ----- | 22-Apr-16 06-Sep-17 | 28-Apr-17 | After amendment of claims on the basis of prior art in TKDL, |

| | | | | | | | | |
|---|---|---|---|---|---|---|---|---|
| | | OF XANTHINE OXIDASE | | | | | | patent issued. |
| 17. | 201501576 83 | ANTI-DIABETIC NUTRACEUTICAL COMPOSITION FROM PALM LEAF EXTRACT | UNIVERSITI PUTRA MALAYSIA | 13-Feb-15 | ----- | 15-Sep-16 27-Feb-17 11-Aug-17 | 10-May-17 10-Nov-17 | After amendment of claims on India's TK on the basis of prior art in TKDL, patent issued. |

*** Examiner further searched the TKDL database independently and rejected few more claims on 26.04.2012.**

**2. Claims Rejected by the Examiner due to TKDL Prior Art Evidence**

| S.No | Pub No. | Title | Applicant | Date of Filing | Date of TKDL Evidence | Date of Rejection of claims (Examiners Report) | Current Status |
|---|---|---|---|---|---|---|---|
| 1. | 20090104297 | HERBAL COMPOSITION FOR TREATMENT OF INFECTIONS CAUSED BY DERMATOPHYTES | Piramal Life Sciences Limited | 17-Sep-08 | ----- | 22-Jun-11 15-Apr-14 | ----- |

| | | | | | | | |
|---|---|---|---|---|---|---|---|
| 2. | 20090298941 | ANTI-ADIPOCYTE FATTY ACID-BINDING PROTEIN (AP2), ANTI-FLAP AND ANTI-CYSLT1 RECEPTOR HERBAL COMPOSITIONS | LAILA IMPEX | 06-Mar-09 | 16-Mar-10 | 29-Aug-11<br>24-Apr-12 | Granted |
| 3. | 20100239696 | Flaxseed lignan complex, methods of using and compositions thereof | Pearl Cohen Zedek Latzer, LLP, 1500 Broadway, 12th Floor, New York 10036, United States | 01-Jun-10 | 01-Nov-10 | 06-Jan-12 | Application is under progress |
| 4. | 20090269398 | Compositions for the encapsulation of natural product extracts in oil medium in hard gelatin capsules and a method of encapsulation | Vilambi NRK Reddy, US | 26-Apr-08 | ----- | 18-Jan-12 | After consideration of prior art evidences in TKDL also by the examiner, application abandoned |
| 5. | 20100173022 | Composition for the treatment of Diabetes Mellitus and Metabolic Syndrome | Morrison & Foerster LLP, 12531 High Bluff Drive, Suite 100, San Diego, CA, 92130-2040, United States | 22-Mar-10 | 03-Aug-10 | 19-Sep-12 | After consideration of prior art evidences in TKDL also by the |

| | | | | | | | |
|---|---|---|---|---|---|---|---|
| | | | | | | | examiner, application abandoned |
| 6. | 201103057 79 | Phytochemical combinations that regulate pathological immunity | COWAN; Fred M., US | 09-Jun-11 | ----- | 25-Feb-13 18-Sep-13 | After consideration of prior art evidences in TKDL also by the examiner, application abandoned |
| 7. | 201000619 44 | Oral hygiene composition comprising myrtle | Mars Incorporated, US | 14-Aug-09 | ----- | 14-Mar-13 | After consideration of prior art evidences in TKDL also by the examiner, application abandoned |
| 8. | 201202310 32 | Agent for expelling parasites in humans, animals or birds | Maria Wilhemina Meijs, US | 03-May-12 | 25-Feb-13 | 24-Jun-13 | After rejection of claims on India's TK on the basis of prior art in TKDL, |

| | | | | | | | |
|---|---|---|---|---|---|---|---|
| | | | | | | | patent issued |
| 9. | 201300172 79 | Formulations for treatment of skin disorders | N. B. Baktha Reddy, Chennai, India | 13-Sep-12 | ----- | 26-Jul-13 | After rejection of claims on India's TK on the basis of prior art in TKDL, patent issued |
| 10. | 200801995 50 | Novel Anticancer Agent, Methods for Obtaining the Same and Pharmaceutical Compositions Thereof | MMI Corporation, US | 29-Feb-08 | ----- | 27-Nov-13 | After consideration of prior art evidences in TKDL also by the examiner, application abandoned |
| 11. | 201300951 71 | Herbal composition and method for treatment of airway inflammation using the same | Taichung Veterans General Hospital, Taiwan | 11-Oct-12 | 15-Aug-13 | 17-Dec-13 | After consideration of prior art evidences in TKDL also by the examiner, application abandoned |

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| 12. | 20130337057 | Novel herbal composition for the treatment of kidney stone and other urinary tract disorders | M/S Patankar; Suresh Balkrishna, India | 03-Sep-03 | 24-Mar-14 | 01-Jul-14 08-May-15 | Application is under progress |
| 13. | 20140106002 | Homeopathic composition and method for the treatment of Skin Irritations and other Skin diseases | M/S Jensen; Ned L, US | 15-Mar-13 | 17-Oct-14 | 06-Jan-15 | Application is under progress |
| 14. | 20080206372 | HERBAL PRODUCT TO BE ADMINISTERED TO DIABETIC PEOPLE AND PROCESS TO OBTAIN IT | Juan Carlos AGREDA NAVAJAS | 05-May-08 | ----- | 13-Nov-15 | After consideration of prior art evidences in TKDL also by the examiner, application abandoned |
| 15. | 20160184374 | SANDALWOOD OIL AND ITS USES | SANTALIS PHARMACEUTICALS, INC. | 29-Jul-15 | ----- | 21-Apr-17 | After consideration of prior art evidences in TKDL also by the examiner, application |

| | | | | | | | |
|---|---|---|---|---|---|---|---|
| | | | | | | | abandoned |
| 16. | 201501183333 | NOVEL COMPOSITIONS AND USES THEREOF | Thomas Jesch and Jacqueline Jesch | 24-Oct-14 | ----- | 22-Jun-17 | After consideration of prior art evidences in TKDL also by the examiner, application abandoned |
| 17. | 201501741185 | Viral Trappers | M/S Bhaskara Rao Katragadda / India | 15-Jan-15 | 12-Nov-15 | 29-Aug-18 | Application is under progress |

**TKDL Outcomes against bio-piracy**

**Controller General of Patents Designs and Trademarks (CGPDTM)**

After conclusion of the Access Agreement with the Controller General of Patents Designs and Trademarks, citation of TKDL references as prior art have led to significant strides towards achieving the goal of preventing misappropriation of Indian Traditional Knowledge.

**1. List of Patent(s) Revoked**

**2. Abandoned**

**3. Amendment / Modification of Claims by Applicants due to TKDL Prior Art**

Evidence

4. Refusal of Application on the basis of Controller's Decision

5. Patent Applications Withdrawn / Deemed to be Withdrawn

**1. List of Patent(s) Revoked**

| S.No | Patent No. | Title | Grantee | Date of Filing | Date of Grant | Notification of Revocation / Final outcome | Date of Notification of Revocation |
|---|---|---|---|---|---|---|---|
| 1. | 252093 | A Synergistic Ayurvedic/ Functional Food Bioactive Composition | M/s Avesthagen Limited<br><br>Discoverer, 9th Floor International Tech Park, Whitefield Road, Bangalore, Karnataka 560066, India | 23-May-07 | 25-Apr-12 | In exercise of powers conferred by section 66 of the Patents Act, 1970, the Central Government declared the said patent "Deemed to be revoked" | 18-Oct-12 |
| 2. | 202211010699 | HAIR OIL COMPOSITION | AMIT KUMAR | 28-Feb-22 | 06-Feb-23 | REFUSED U/S 25(1) | 30-Nov-23 |
| 3. | 202321072313 | A NOVEL POLYHERBAL COMPOSITIO | MALVIYA NEELESH, MALVIYA | 23-Oct-23 | 05-Mar-24 | REFUSED U/S 25(1) | 08-Nov-24 |

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|---|---|---|---|---|---|---|---|
| | | N WITH ANTIDIABETIC AND ANTIOXIDANT ACTIVITIES | SAPNA, SAXENA RAJIV, GOSWAMI ANINDYA, SINGH HIMANI, SHARMA DARSHANA , DHERE MANISHA and RATHORE NAMRATA | | | | |

**2. Abandoned**

| S. No | Pub. No. | Title | Applicant | Date of Filing | Date of TKDL Evidence | Date of Examiner's Report | Current Status |
|---|---|---|---|---|---|---|---|
| 1. | 2195/CHE/2008 | Anti-fever botanical composition and uses thereof | Micro-Dose Life Sciences LLC | 10-Sep-08 | 09-Apr-12 | 31-Jan-13 | Abandoned u/s 21(1) |
| 2. | 2929/MUM/2009 | A Hepatoprotective Herbal Composition | 1 . RATNAM.SHIV PRAKASH 2 . PUNDARIKAKSHUDU,KILAMBI. | 18-Dec-09 | 27-Jun-12 | 04-Mar-13 | Abandoned U/s 21(1) |
| 3. | 2271/CHE/2010 | Role Of An Herbal Formulation In The Prevention And | Registrar Interdisciplinary School | 09-Au | 04-Jul-12 | 04-Jun-14 | Abandoned |

| | | | | | | | |
|---|---|---|---|---|---|---|---|
| | | Management Of Age Related Neurodegenerative Disorders With Speciale Reference To Senile Dementia | | g-10 | | | U/s 21(1) |
| 4. | 2067/CHE/2006 | Cinnamomum Zeylanicum water extracts and their application in Diabetes related conditions | Avestha Gengraine Technologies Pvt. Ltd. | 09-Nov-06 | 04-Sep-12 | 30-Oct-14 | Abandoned u/s 21(1) |
| 5. | 537/CHENP/2008 | Screening Method for the identification of composition suitable for the treatment of oral cavity malodor asoociated with smoking a tobacco product | WM. WRIGLEY JR. COMPANY | 01-Feb-08 | 29-Oct-12 | 20-May-15 | Abandoned U/s 21(1) |
| 6. | 2038/MUM/2010 | A herbal composition (HC9) for the treatment of Breast Cancer | 1. Dr. Ruchika Kaul-Ghanekar 2. Dr. Omkar Kulkarni 3. Snehal A Suryavanshi | 16-Jul-10 | 20-Oct-14 | 16-Feb-16 | Abandoned u/s 21(1) |
| 7. | 1212/DEL/2009 | A Broad Spectrum Polyherbal Formulation For The Treatment Of Allopecia And Chronic Skin Disorders | Manish Saxena | 12-Jun-09 | 07-Jun-12 | 30-Jun-16 | Abandoned U/s 21(1) |
| 8. | 1110/CHE/2010 | Trem Plus-A Natural Break Through In Complexion | Singh Aditya Narayan | 20-Apr-10 | 05-Dec-13 | 02-Jul-16 | Abandoned U/s 21(1) |

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|---|---|---|---|---|---|---|---|
| 9. | 1114/CHE/2010 | O - KOF SYRUP - A POLYHERBAL COMPOSITION FOR RELIEF FROM BRONCHIAL CONGESTION, NASAL BLOCKS | Singh Aditya Narayan | 20-Apr-10 | 25-Oct-12 | 02-Jul-16 | Abandoned U/s 21(1) |
| 10. | 1117/CHE/2010 | Bioliv Syrup - An Effective Polyherbal Hepatoprotective Tonic Effective In Hepatitis, Liver Cirrhosis And Jaundice And Other Infectious And/Or Metabolic Disorders Of Liver Due To Internal And External Toxic Substance Such As Alcohol Etc | Singh Aditya Narayan | 20-Apr-10 | ----- | 02-Jul-16 | Abandoned U/s 21(1) |
| 11. | 1111/CHE/2010 | Infentaal Syrup - A Polyherbal Formulation For Toning Up Of Overall Growth And Strengthening Immunity In Infants | Singh Aditya Narayan | 20-Apr-10 | 20-Jun-12 | 02-Jul-16 | Abandoned U/s 21(1) |
| 12. | 2209/CHE/2011 | Bowel Cleanser Composition And Method Of Preparation Of The Same | Jindal Naturecure Institute | 30-Jun-11 | 20-Jan-12 | 02-Jul-16 | Abandoned U/s 21(1) |
| 13. | 2450/CHE/2012 | Herbal Cream For The Treatment Of Leucoderma | 1 . Y. Madhusudan Rao 2 . Shayeda 3 . Renuka Pothu | 20-Jun-12 | 04-Sep-12 | 28-Apr-17 | Abandoned U/s 21(1) |
| 14. | 1075/KOL/2012 | HERBAL FORMULATION FOR | NAMOSOLE PALLI MANGAL LCPAG KENDRA | 18-Se | ----- | 31-Jul-17 | Abandoned |

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|---|---|---|---|---|---|---|---|
| | | INDIGESTION/ACIDITY/ CONSTIPATION | | p-12 | | | u/s 21(1) |
| 15. | 3537/DEL/ 2012 | A NOVEL HERBAL TEA | GUPTA, SHIV SHANKAR | 19-Nov-12 | ----- | 24-Aug-17 | Abandoned u/s 21(1) |
| 16. | 1816/CHE /2013 | HERBAL PREPARATION TO PREVENT AND TREAT COMMON COLD, AIR POLLUTION EFFECTS, ASTHMA AND COPD. | NIDAMARTHI HIMABINDU | 25-Apr-13 | ----- | 30-Oct-17 | Abandoned U/s 21(1) |
| 17. | 7676/DEL NP/2011 | A PLANT EXTRACT COMPRISING STATINS AND PREPARATION TECHNIQUES AND USES THEREOF | 1. NANYANG POLYTECHNIC, 2. EU YAN SANG INTERNATIONAL LTD | 05-Oct-11 | 06-Dec-13 | 27-Dec-17 | Abandoned U/s 21(1) (04/08/ 2018) |
| 18. | 2170/MUM /2011 | Composition and preparation of herbal liposomes for anti-asthmatic activity with increased efficacy and reduced dose | Shital Shivaji Chavan | 29-Jul-11 | 29-Aug-12 | 13-Mar-18 | Abandoned u/s 21(1) |
| 19. | 1519/MUM /2012 | Herbal Composition For Vaginal Treatment | Ultratech India Limited | 18-May-12 | ----- | 11-Aug-18 | Abandoned U/s 21(1) |
| 20. | 1674/MUM /2012 | Novel Antialzheimer Herbal Composition Method Of Preparation Of The Same And Use Thereof | Dr. Manish A. Rachchh | 07-Jun-12 | ----- | 30-Mar-19 | Abandoned U/s 21(1) |
| 21. | 3219/MUM /2012 | HERBAL PRODUCT AND PROCESS FOR | NIKITA JAIN | 06-No | ----- | 11-Jul-19 | Abandoned |

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|---|---|---|---|---|---|---|---|
| | | TREATING CHOLESTEROL,CARDIOVASCULAR & BLOOD RELATED DISEASE | | v-12 | | | U/s 21(1) (31/01/2020) |
| 22. | 1509/MUM/2012 | Novel Hepatoprotective Herbal Composition   Method Of Preparation Of The Same And Use Thereof | Dr. Manish A. Rachchh | 18-May-12 | ----- | 24-Jul-19 | Abandoned U/s 21(1) |
| 23. | 1515/MUM/2012 | NOVEL CARDIORPOTECTIVE HERBAL COMPOSITION  METHOD OFPREPARATION OF THE SAME AND USE THEREOF | Dr. Manish A. Rachchh | 18-May-12 | ----- | 02-Aug-19 | Abandoned u/s 21(1) |
| 24. | 4650/MUM/2015 | A POLY HERBAL FORMULATION | ITANKAR PRAKASH.R and NAGULWAR DHANASHRI.B | 10-Dec-15 | ----- | 06-Dec-21 | Abandoned u/s 21(1) |
| 25. | 201821024350 | AN IMMUNE SYSTEM BOOSTER COMPOSITION AND METHOD OF PREPARATION THEREOF | ARPITA DIVYESH DOSHI | 29-Jun-18 | ----- | 06-Dec-21 | Abandoned u/s 21(1) |
| 26. | 202241033206 | STRAWBERRY LEAF EXTRACT GEL | Sneha Sathish | 10-Jun-22 | ----- | 26-Sep-22 | Abandoned u/s 15 |
| 27. | 202121009056 | TOPICAL WOUND HEALING COMPOSITION | NEETESH KUMAR JAIN | 04-Mar-21 | ----- | 02-Nov-23 | Abandoned u/s 21(1) |

**3. Amendment / Modification of Claims by Applicants due to TKDL Prior Art Evidence**

| S. No | Pub. No. | Title | Applicant | Date of Filing | Date of TKDL Evidence | Date of Examiner's Report | Date of Amendment of Claims |
|---|---|---|---|---|---|---|---|
| 1. | 182/MUMNP/2009 | Cinnamomi and Poria composition and uses thereof | Jiangsu Kanion Pharmaceuticals Co Ltd/ China | 22-Jan-09 | 29-Jun-12 | ----- | 01-Apr-13 |
| 2. | 881/CHENP/2008 | Process for producing enriched fractions of Tetrahydroxycurcumin and Tetrahydrotetrahydroxycurcumin | Gogaraju Ganga Raju/ India | 21-Feb-08 | 16-May-12 | 28-Aug-12 | 05-Aug-13 |
| 3. | 281/MUM/2008 | HERBAL COMPOSITIONS FOR INDUCING FERTILITY IN CATTLE. | PRASHANT NEMINATH PATIL | 11-Feb-08 | 22-Oct-14 | 24-Feb-14 | 22-Oct-14 |
| 4. | 889/MUMNP/2010 | Herbal Compositions And Methods For Treating Hepatic Disorders | 1 . Sabell Corporation 2 . Jose Gonzalo Cabanillas Coral | 29-Apr-10 | 22-Jun-12 | 30-Jun-12 | 01-Feb-16 |
| 5. | 601/MUM/2011 | A Novel Herbal Composition for the Treatment of Kidney Stone and other | M/S PATANKAR SURESH | 03-Mar-11 | 11-Feb-13 | 30-Nov-15 | 26-Aug-16 |

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|---|---|---|---|---|---|---|---|
| | | Urinary Tract Disorders | BALKRISHNA / India | | | | |
| 6. | 4108/KOLNP/2008 | Phospholipid Complexes of Olive Fruits or Leaves Extracts Having Improved Bioavailability | M/S INDENA S.P.A./ Italy | 10-Oct-08 | 30-May-12 | 15-Sep-16 | 08-Mar-17 |
| 7. | 2645/DEL/2005 | Herbo-Mineral Formulation For The Management Of Maturity Onset Diabetes Mellitus | Shubhash Chander Sehgal | 04-Oct-05 | 19-Jun-12 | 30-Jun-16 | 10-Jan-18 |
| 8. | 2171/DEL/2009 | Herbal Formulation for External Application Having Anti-Arthritic Effect and Process Thereof | Sanat Products Limited | 20-Oct-09 | 27-Aug-18 | 30-Nov-17 | 27-Aug-18 |
| 9. | 201741030554 | HERBAL DRINKING WATER AND PROCESS FOR PREPARATION THEREOF | SHIVAM ENTERPRISES | 29-Aug-17 | 18-Jan-19 | 26-Mar-18 | 30-Jan-19 |
| 10. | 1219/KOLNP/2013 | Compositions for the Treatment of Peripheral Ulcers of Various Origins | M/S INDENA S.P.A./ Italy | 26-Apr-13 | 23-Jun-14 | 13-Feb-19 | 13-Aug-19 |
| 11. | 216/KOLNP/2013 | Formulations containing Extracts of Echinacea Angustifolia and Zingiber Officinale which are useful in reducing | M/S INDENA S.P.A./ Italy | 24-Jan-13 | 18-Jun-14 | 25-Feb-19 | 22-Nov-19 |

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|---|---|---|---|---|---|---|---|
| | | Inflammation and Peripheral Pain | | | | | |
| 12. | 1343/DEL/2010 | PHARMACEUTICAL COMPOSITIONS BASED UPON PHOSPHOLIPID COMPLEXED MICROPARTICLES OF DELPHINIUM DENUDATUM (JADWAR) EXTRACT & PREPARATION THEREOF | CENTRAL COUNCIL FOR RESEARCH IN UNANI MEDICINE | 10-Jun-10 | 21-Nov-19 | 22-Jan-15 | 10-Dec-19 |
| 13. | 806/MUM/2014 | A Herbal Formulation. | SAVITA DIXIT (Department of Chemistry, Maulana Azad National Institute of Technology, M. P. India) | 11-Mar-14 | 05-Jan-20 | 05-Jul-19 | 05-Jan-20 |
| 14. | 2103/DEL/2012 | NOVEL FORMULATION OF STANDARDIZED EXTRACT OF PSORALEA CORYLIFOLIA FOR THE TREATMENT OF LIVER CIRRHOSIS" | AMITY UNIVERSITY | 06-Jul-12 | ----- | 22-Jul-19 | 23-Jan-20 |
| 15. | 201821050059 | HERBAL FORMULA CONTAINING GYMNOSPORIA MONTANA LEAF EXTRACT FOR THE TREATMENT OF LIVER DISEASES | SV INNOVATION FOUNDATION | 31-Dec-18 | 14-Jun-19 | 14-Jun-19 | 12-Feb-20 |

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| 16. | 4300/MUM/2015 | METHOD FOR PREPARING AN HERBAL LAXATIVE FORMULATION | 1 . ASHOK PANDURANGJI MEHERE, 2 . BHUNESHWARI ASHOK MEHERE | 10-Nov-15 | 02-Jun-20 | 26-Nov-19 | 02-Jun-20 |
| 17. | 201631034147 | A Process for Preparing an Anti-Hypertensive Herbal Composition | Kanhai Ram Mahto | 05-Oct-16 | 31-Jul-20 | 24-Oct-19 | 31-Jul-20 |
| 18. | 201911018961 | A HERBAL ANTHELMINTIC FORMULATION AND PROCESS OF ITS PREPARATION | 1. Dr. Nitin Kumar, 2 . Dr. Anurag Chaudhary, 3 . Dr. Girendra Kumar Gautam, 4 . Dr. S. Sadish Kumar, 5 . Dr. Praveen Kumar Gaur, 6 . Prasoon Kumar Saxena | 13-May-19 | 01-Aug-20 | 25-Feb-20 | 01-Aug-20 |
| 19. | 36/KOL/2014 | HERBAL COMPOSITION AND FEED THEREOF. | TUDU GOPAL | 10-Jan-14 | 02-Sep-20 | 13-Jun-19 | 09-Sep-20 |
| 20. | 3507/MUM/2013 | HERBAL COMPOSITION FOR TREATMENT OF HYPERTENSION AND ASSOCIATED DISORDERS. | SHARMA, Anil Kumar | 06-Nov-13 | 02-Sep-20 | 11-Jan-19 | 15-Sep-20 |

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| 21. | 201721045968 | NICOTINE SUBSTITUTE FOR TOBACCO PRODUCTS | LALITA BORA | 21-Dec-17 | 30-Jul-20 | 06-Jan-20 | 22-Sep-20 |
| 22. | 201611016327 | HERBAL COMPOSITION FOR TREATMENT OF HIGH BLOOD GLUCOSE LEVELS IN METABOLIC DISEASES AND PROCESS OF PREPARING SAME | Sharma, Ganesh Dutt | 10-May-16 | 07-Oct-20 | 09-Sep-19 | 22-Oct-20 |
| 23. | 202021017003 | A HERBAL COMPOSITION FOR BURN | 1 . Namrata Ravindra Tendolkar 2 . Ravindra Vishnu Tendolkar | 20-Apr-20 | 26-Jun-20 | 26-Jun-20 | 07-Dec-20 |
| 24. | 5691/CHE/2015 | A PROCESS TO ENHANCE THE BIOACTIVITY OF ASHWAGANDHA EXTRACTS | ANTONY, BENNY | 22-Oct-15 | 14-Dec-20 | 18-Jun-20 | 14-Dec-20 |
| 25. | 201611007752 | HERBAL FORMULATION FOR TREATING DISEASE AND COMPLICATIONS CAUSED BY THE MALARIAL PARASITE | CHATURVEDI, Shyamlal | 04-Mar-16 | 26-Dec-20 | 28-Feb-19 | 18-Jan-21 |
| 26. | 201621030891 | PROCESS FOR PREPARING AN ANTI-ARTHRITIC HERBAL COMPOSITION | CHIKANE, Hiraman Baban | 09-Sep-16 | 05-Jan-21 | 07-Jul-20 | 19-Jan-21 |

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|---|---|---|---|---|---|---|---|
| 27. | 262/KOL/2014 | Herbal Composition for a Beverage with Anti-Inflammatory Properties | DEVI, Siya | 04-Mar-14 | 06-Nov-20 | 14-Feb-19 | 23-Mar-21 |
| 28. | 731/MUM/2014 | HERBAL COMPOSITION FOR A BEVERAGE WITH ANTIOXIDANT PROPERTIES | GADA, Samatbhai Popatbhai | 04-Mar-14 | 08-Feb-21 | 29-Jan-19 | 27-Mar-21 |
| 29. | 59/KOL/2014 | HERBAL COMPOSITIONS FOR PREVENTION AND TREATMENTOF STRESS AND AS A FEED ADDITIVE IN BIRDS | MAITY, Kalipada | 15-Jan-14 | 11-Mar-21 | 12-Feb-19 | 01-Apr-21 |
| 30. | 208/KOL/2013 | A HERBAL COMPOSITION FOR TREATMENT OF MALARIA | PANDEY, Rajmangal | 25-Feb-13 | 15-Mar-21 | 12-Feb-19 | 06-Apr-21 |
| 31. | 749/MUM/2014 | Herbal Laxative Formulation and Process of Preparation Thereof | Dr. Ashwin porwal | 05-Mar-14 | 03-Mar-21 | 12-Feb-19 | 16-Jun-21 |
| 32. | 1720/MUM/2013 | A HERBAL BASED MEDICINAL COMPOSITION | ARI HEALTHCARE PVT. LTD. | 14-May-13 | 21-Jul-20 | 24-Apr-18 | 12-Jul-21 |
| 33. | 201621039902 | PROCESS OF PREPARATION OF HERBAL ANTI-ASTHMATIC COMPOSITION | Chickane, Hiraman Baban | 22-Nov-16 | 14-Jul-21 | 08-Jul-20 | 28-Jul-21 |

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| 34. | 201611033966 | A PROCESS FOR PREPARING ANTI-ARTHRITIC AND ANTI-PARALYTIC HERBAL OIL FORMULATION | 1 . LAL, Mohan 2 . LATA, Sneh 3 . AYUSHI 4 . PRIYANSHI | 04-Oct-16 | 29-Jul-21 | 22-Nov-19 | 29-Jul-21 |
| 35. | 54/KOL/2014 | HERBAL COMPOSITIONS FOR PREVENTION AND TREATMENT OF STRESS AND AS A FEED ADDITIVE IN BIRDS. | MANDAL, Shephali | 14-Jan-14 | 15-Sep-21 | 14-Feb-19 | 21-Sep-21 |
| 36. | 14/KOL/2014 | HERBAL COMPOSITIONS FOR PREVENTION AND TREATMENT OF STRESS AND AS A FEED ADDITIVE IN BIRDS. | MANDAL, Pratima | 03-Jan-14 | 15-Sep-21 | 15-Feb-19 | 24-Sep-21 |
| 37. | 201631007760 | A HERBAL FORMULATION FOR TREATING DISEASE AND COMPLICATIONS CAUSED BY THE MALARIAL PARASITE | SINGH, Shashibhushan | 04-Mar-16 | 28-Jul-21 | 13-Jan-21 | 24-Sep-21 |
| 38. | 201721000834 | Process of preparing herbal composition for the treatment of osteoporosis | Hirabhai Choudhary | 09-Jan-17 | 18-Oct-21 | 15-Dec-20 | 26-Oct-21 |
| 39. | 1835/MUM/2012 | HERBAL COMPOSITION FOR ALLEVIATION OF PAIN IN JOINTS | MAHAVIR JAYKUMARJI SHAH | 26-Dec-12 | ----- | 25-Oct-21 | 03-Feb-22 |

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| 40. | 202041053693 | AN ORAL PHYTOCHEMICAL BASED HERBAL COMPOSITION FOR SARS-CoV-2 AND METHOD OF PREPARATION THEREOF | 1. REMEDIUM THERAPEUTICS PRIVATE LIMITED 2. DELHI PHARMACEUTICAL SCIENCES & RESEARCH UNIVERSITY | 10-Dec-20 | ----- | 16-Jun-22 | 17-May-23 |
| 41. | 201621011361 | A Process of Preparing A Nutraceutical Supplement For Constipation | Mahatma Gandhi Institute For Rural Industrialization (Mgiri) | 31-Mar-16 | 06-Dec-22 | 30-Jun-23 | 26-Jul-23 |
| 42. | 201611042301 | HERBAL PREPARATION FOR THERAPEUTIC MANAGEMENT OF NEUROLOGICAL DISORDERS | Fatima Begum | 12-Dec-16 | ----- | 17-Oct-21 | 25-Oct-23 |
| 43. | 202041055924 | A COMPOSITION FOR IMPROVING PULMONARY AND NEUROLOGICAL CONDITIONS AND A METHOD OF PREPARATION THEREOF | Lifespice India Private Limited | 22-Dec-20 | ----- | 31-Jan-22 | 30-Jan-24 |

**4. Refusal of Application on the basis of Controller's Decision**

| S. No | Pub. No. | Title | Applicant | Date of Filing | Date of TKDL Evidence | Date of Controller's Decision to Refuse the application | Current Status |
|---|---|---|---|---|---|---|---|
| 1. | 1973/MUMNP/2007 | Active Fraction Of A Polar Solvent Extact From The Latex Of Euphorbiaceae Plants | Amazonia Fitomedicamentos LTDA | 26-Nov-07 | 07-Jun-12 | ----- | Application Refused U/S 15 (Examination Report) |
| 2. | 104/MUM/2011 | Method and process of preparation of natural tooth stain & tartar remover using natural organic husk ash as tooth scrub & polish in powder & paste form without use of any harsh chemicals or foaming agents that erode the enamel. | Mr. Tagore Berry | 12-Jan-11 | 13-Jan-12 | ----- | Application Refused u/s 15 (Examination Report) |
| 3. | 1576/DEL/2006 | A Novel Herbal Composition Effective | Director, Central Council For | 04-Jul-08 | ----- | 27-Dec-12 | Application was refused |

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| | | against Skin Disorders and to a Process for the Preparation Thereof | Research in Unani Medicine (CCRUM), New Delhi, India | | | | on 27-Dec-12 |
| 4. | 1864/DEL/2006 | A novel herbal composition and a process for preparation thereof effective against Diarrhaea and Dysentery | Central Council for Research in Unani Medicines (CCRUM) / India | 21-Aug-06 | ----- | 14-Mar-13 | Application was refused |
| 5. | 1313/DEL/2006 | A preparation for the treatment of running and stuffy nose, productive or non-productive cough with or without fever and to a process for the preparation thereof | Central Council for Research of Ayurveda and Siddha / India | 31-May-06 | ----- | 19-Mar-13 | Application was refused |
| 6. | 2172/MUM/2008 | An Ayurvedic composition for improvement of sexual vigor | Chandrakant V. Chandankar | 10-Oct-08 | 04-May-12 | 09-May-13 | Application refused u/s 15 |

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| 7. | 2426/DEL/2007 | Hard Boiled Herbal Skin Candy | M/S Sharadendu Bali/ India | 20-Nov-07 | ----- | 09-Jul-13 | Application was refused on 09-Jul-13 |
| 8. | 692/DEL/2004 | A Synergistic Pharmaceutical Composition for the Treatment of Cancer | M/S Anshul Kumar Agrawal / India | 08-Apr-04 | ----- | 17-Jul-13 | Application was refused on 17-Jul-13 |
| 9. | 1865/DEL/2006 | A novel herbal composition effective against general weakness and a process thereof | Central Council for Research in Unani Medicines (CCRUM) / India | 21-Aug-06 | ----- | 19-Jul-13 | Application was refused |
| 10. | 369/DEL/2005 | A composition for the treatment of sex drive and weakness | Shrivastav, Yashvardhan and Shrivastav, Anand / India | 21-Feb-05 | ----- | Sep-13 | Application was refused |
| 11. | 1642/DEL/2006 | A novel herbal composition effective against headache and a process for the preparation thereof | Central Council for Research in Unani Medicines (CCRUM) / India | 17-Jul-06 | ----- | 23-Sep-13 | Application was refused |
| 12. | 3387/DELNP/2004 | Formulations useful in the treatment of male and | INDENA S.P.A/ Italy | 01-Nov-04 | 07-Nov-12 | 17-Oct-13 | Application was Refused on 17-Oct-13 |

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| | | female impotence | | | | | |
| 13. | 1962/MUM/2008 | A herbal formulation for treating sickle cell disease | Atul Desai/ India | 16-Sep-08 | 01-Jun-12 | 12-Dec-13 | Application was Refused on 12-Dec-13 |
| 14. | 1263/DELNP/2006 | Oral Compositions for the Treatment of Cellulite | M/S INDENA S.P.A./ Italy | 08-Mar-06 | 31-Aug-12 | 21-Feb-14 | Application Refused U/S 15 (Order on 06-Jan-2023) |
| 15. | 1734/DEL/2007 | A novel herbal composition for the treatment of Eczema | Central Council for Research in Unani Medicines (CCRUM) / India | 14-Sep-07 | ----- | 10-Mar-14 | Application was refused |
| 16. | 1735/DEL/2007 | A novel herbal preparation for the treatment of Sinusitis | Central Council for Research in Unani Medicines (CCRUM) / India | 14-Aug-07 | ----- | 10-Mar-14 | Application was refused |
| 17. | 907/DEL/2005 | A synergistic herbal formulation useful in reducing undesirable after-effects of alcoholic beverages | Anil Sharma / India | 08-Apr-05 | 12-Oct-12 | 12-Mar-14 | Application was Refused on 12-Mar-14 |

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| 18. | 797/KOL/2009 | A Dietary Supplement Composition from Herbal Source and Process for Its Preparation | M/S GUHA, NILANJAN/ India | 21-Mar-14 | 06-Sep-12 | 21-Mar-14 | Application was refused on 21-Mar-2014 |
| 19. | 193/CHE/2007 | A herbal preparation effective in the prevention and management of Rheumatoid Arthritis and associated compliants | Dr. Swaminathan / India | 31-Jan-07 | ----- | 28-Mar-14 | Application was refused |
| 20. | 172/DEL/2007 | A preparation for treatment of Vitiligo and a method of preparation thereof | Central Council for Research in Unani Medicines (CCRUM) / India | 29-Jan-07 | ----- | ----- | Application was Refused (Hearing on 14-Sep-12) |
| 21. | 212/DEL/2006 | A herbal preparation for the prevention and management of various types of Carcinoma | Prof. S. S. Trivedi / India | 25-Jan-06 | 31-Aug-12 | ----- | Application was Refused (Hearing on 27-Feb-13) |
| 22. | 1783/DEL/2007 | Nutraceutical Biscuits | Central Council for Research in Unani Medicines | 21-Aug-07 | ----- | 15-Jan-15 | Application was refused on 15-Jan-15 |

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| | | | (CCRUM) / India | | | | |
| 23. | 1732/DEL/2007 | A novel composition of the herbal tea | Central Council for Research in Unani Medicines (CCRUM) / India | 14-Sep-07 | ----- | 12-Mar-15 | Application was refused on 12-Mar-15 |
| 24. | 1927/KOLNP/2010 | Pharmaceutical Compositions for Treating Anxiety | M/S CHI, YU-FEN ; ZHANG, ZUOGUANG / China | 26-May-10 | 03-Sep-12 | 30-Jun-15 | Application was refused on 30 June 2015 |
| 25. | 1752/DEL/2007 | A Novel Herbal Composition for the Treatment of Eczema | M/S Central Council for Research in Unani Medicines (CCRUM) / India | 17-Aug-07 | ----- | 04-Sep-15 | Application was refused on 4 Sept 2015 |
| 26. | 156/MUM/2007 | A Composition For Improving The Quality Of Life In Cardiac Patients | Savitri Vasudev Baikampady | 29-Jan-07 | 31-Aug-12 | 14-Mar-16 | Application refused u/s 15 |
| 27. | 1512/MUM/2011 | Herbal Composition For Treatment Of Piles | Popatbhai Karson Patel | 18-May-11 | 20-Jun-12 | 15-Mar-16 | Application refused u/s 15 |
| 28. | 833/DEL/2007 | An Edible Oil Blend Of Mustard and Rice Bran and | M/S Dr.Shakir Ali, Dr.Jafar Salamat Khan, Dr.Malik Zainul Abdin, Mr. Hamid | 16-Apr-07 | 23-Oct-12 | 20-Jun-16 | Application was refused on 20-Jun-2016 |

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| | | a Process Thereof | Nawaz Khan / India | | | | |
| 29. | 529/KOL/2007 | Unique Natural Oils and Cream for Recovering the Disease like Spondylosis, Osteo-Arthritis etc and the Process of Producing the Same | M/S Apurba Ganguly / India | 02-Apr-07 | 25-Sep-12 | 25-Jul-16 | Application was refused on 25-Jul-2016 |
| 30. | 926/CHENP/2010 | Antiobese Compositions containing Holoptelea Integrifolia Extracts | M/S Laila Nutraceuticals / India | 18-Feb-10 | 16-May-12 | 17-Feb-17 | Application was refused on 17-Feb-2017 |
| 31. | 1506/MUM/2011 | Ayurvedic Herbal Medicine | Nilesh Madhusudan Pagedar | 18-May-11 | 29-Jun-12 | 28-Apr-17 | Application Refused U/S 15 |
| 32. | 1608/DELNP/2007 | Oral Care Composition Comprising Essential Oils | The Procter & Gamble Company | 28-Feb-07 | 24-Aug-12 | 22-Jun-17 | Application refused u/s 15 |
| 33. | 1922/DEL/2005 | Herbal Preparation For Relief In Respiratory Disorders Aspecially Asthma | Raj Kumari Shukla | 22-Jul-05 | 19-Jun-12 | 13-Jul-17 | Application refused u/s 15 |

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| 34. | 2221/DEL/2008 | Herbal Formulation For Prevention And Treatment Of Diabetes And A Process For Preparing The Said Formulation | Innoveda Biological Solutions (P) Ltd | 22-Sep-08 | 19-Jun-12 | 16-Aug-17 | Application Refused U/S 15 |
| 35. | 1066/DEL/2009 | A Process For The Preparation Of A Composition Useful For Treatment In Chronic Respiratory Disorders | Marozhukayil Joseph Jose | 25-May-09 | 17-Jan-12 | 16-Aug-17 | Application Refused U/S 15 |
| 36. | 497/KOLNP/2009 | Compositions for the treatment of chronic degenerative inflammatory conditions | INDENA S.P.A. | 05-Feb-09 | 15-Oct-12 | 25-Aug-17 | Application refused u/s 15 |
| 37. | 1352/MUM/2013 | Herbal Compositions for Management and Treatment of Joint and Muscle Pain in Vertebrates | M/S RUPAK ENTERPRISES (P) LTD. / India | 10-Apr-13 | 07-Nov-14 | 04-Sep-18 | Application was refused on 04-Sept-2018 |
| 38. | 109/DELNP/2007 | Composition comprising Neem Oil and Oil Extract of | M/S PHYTOCEUTICALS LTD./ Switzerland | 04-Jan-07 | 07-Feb-13 | 14-Sep-18 | Application was refused on 14-Sep-2018 |

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| | | Hypericum Perforatum | | | | | |
| 39. | 3656/KOLNP/2008 | Phospholipid Complexes of Curcumin Having Improved Bioavailability | INDENA S.P.A. | 08-Sep-08 | 01-Jun-12 | 30-May-19 | Application Refused U/S 15 |
| 40. | 4434/CHE/2011 | A PROCESS FOR ISOLATING AND IDENTIFYING THE ACTIVE CONSTITUENT OF CASSIA SENNA LEAF EXTRACT, BEING A CONSTITUENT FOR THE TREATMENT OF PROSTATE CANCER; AND TO THE SAID ACTIVE CONSTITUENT WHENEVER ISOLATED AND IDENTIFIED BY THE SAID PROCESS | 1 . DR. V.K. GOPALAKRISHNAN, 2 . D. GURUKUMAR, 3 . KARPAGAM UNIVERSITY | 19-Dec-11 | ----- | 26-Aug-19 | Application Refused U/S 15 |
| 41. | 1054/MUM/2011 | HERBAL MEDICAMENT FOR HEALING WOUND | 1. RABARI DEVKARANBHAI, 2 . RABARI NARANBHAI, 3 . DAMOR | 31-Mar-11 | ----- | 23-Oct-19 | Application Refused U/S 15 |

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| | | | JAGATABEN, 4 . PARMAR LILAJI, 5 . DEVGANIA BECHARBHAI, 6 . NAROLLA HARIBHAI | | | | |
| 42. | 1103/DEL/2007 | Herbal Treatment For Cancer | Mr. Vishnu Kumar Sharma | 22-May-07 | 12-Oct-12 | 26-Nov-19 | Application Refused U/S 15 |
| 43. | 1036/KOL/2007 | Flax Seed Biscuits | ITC Limited | 25-Jul-07 | 24-Sep-12 | 02-Jan-20 | Application refused u/s 25(1) |
| 44. | 201821002010 | SYNERGISTIC HERBAL COMPOSITION WITH ANTI-PROLIFERATIVE ACTIVITY | Shashvi Remedies (OPC) Private Limited | 18-Jan-18 | ----- | 01-May-20 | Application Refused U/S 15 |
| 45. | 201911048481 | A HERBAL POWDER COMPOSITION FOR THE TREATMENT OF ASTHMA | SHAAFI NATURCURE LLP | 27-Nov-19 | ----- | 16-Sep-20 | Application Refused U/S 15 |
| 46. | 1294/CHENP/2010 | ANTI-ADIPOGENIC COMPOSITIONS CONTAINING PIPER BETEL AND DOLICHOS BIFLORAS | LAILA NUTRACEUTICALS | 08-Mar-10 | 15-Apr-15 | 11-Mar-21 | Refusal of the grant of patent |

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| 47. | 1065/DEL/2009 | A process for preparation of a composition useful for treatment of skin diseases such as fungal skin infection, bacterial skin infections, virus infections like eczema, psoriasis, scabies, allergies etc. | Marozhukayil Joseph Jose | 25-May-09 | 17-Jan-12 | 16-Mar-21 | Application refused u/s 15 |
| 48. | 1916/CHE/2009 | Natural Extract From Whole Banana Fruit (Musa Spp.) | Munisekhar Medasani | 12-Aug-09 | 04-Sep-12 | 02-Mar-22 | Application refused u/s 15 & 25(1) |
| 49. | 2239/MUM/2011 | Plant Extracts Composition For The Treatment Of Liver Dysfunction | Shukla, Mukesh, Harilal | 09-Aug-11 | 26-Jun-12 | 12-Sep-22 | Application Refused U/S 15 |
| 50. | 1564/MUM/2012 | Herbal Compositions For Treatment Or Prevention Of Inflammation Or Pain | Gamar Chappabhai Valabhai | 23-May-12 | ----- | 10-Nov-22 | Application Refused U/S 15 |
| 51. | 1047/MUM/2008 | Herbal Composition | 1 . Shardaben Jethabhai Antala, 2 . | 15-Ma | 09-Aug-18 | 01-Dec-22 | Application Refused U/S 15 |

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| | | | Rakeshbhai Antala | y-08 | | | |
| 52. | 222/KOLNP/2015 | COMPOSITIONS FOR TREATMENT OF CANCER-RELATED FATIGUE | INDENA S.P.A. | 11-Jul-13 | ----- | 06-Jan-23 | Application Refused U/S 15 |
| 53. | 201627010565 | COMPOSITION FOR PREVENTING AND TREATING CANCER RELATED FATIGUE CONTAINING PROCESSED GINSENG POWDER OR PROCESSED GINSENG EXTRACT HAVING INCREASED GINSENOSIDE CONSTITUENT | GREEN CROSS WELLBEING CORPORATION | 28-Mar-16 | ----- | 25-Jan-23 | Application Refused U/S 15 |
| 54. | 1551/DEL/2010 | A Novel Herbal Preparation For Treating Constipation And Maintaining Intestinal Bacterial Flora | AKUMS DRUGS & PHARMACEUTICALS LIMITED | 02-Jul-10 | 26-Oct-12 | 10-Feb-23 | Application Refused U/S 25(1) |

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| 55. | 202041040457 | ANTIBACTERIAL AND ANTIFUNGAL ACTIVITY OF NANO HERBAL GEL FROM THE ETHANOLIC EXTRACT OF THE STEM BARK OF BAUHINIA VARIEGATA | VELS INSTITUTE OF SCIENCE, TECHNOLOGY & ADVANCED STUDIES (VISTAS) | 18-Sep-20 | ----- | 06-Mar-23 | Application Refused U/S 15 |
| 56. | 201611006947 | A NOVEL HERBAL COMPOSITION EFFECTIVE AGAINST HUMMA EIJAMIYAH (MALARIA) AND A PROCESS FOR ITS PREPARATION THEREOF | CENTRAL COUNCIL FOR RESEARCH IN UNANI MEDICINE (CCRUM) | 29-Feb-16 | 18-Dec-19 | 29-Dec-23 | Application Refused U/S 15 |
| 57. | 201841036973 | A PROCESS OF PREPARATION OF POLYHERBAL OINTMENT FOR SKIN AILMENTS | KARUNYA UNIVERSITY | 01-Oct-18 | ----- | 14-Mar-24 | Application Refused U/S 15 |
| 58. | 201911038809 | A HERBAL PREPARATION TO CONTROL OVARIAN | VINOD AGGARWAL | 25-Sep-19 | ----- | 27-Mar-24 | Application Refused U/S 15 |

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| | | CYSTIC/POLY CYSTIC OVARY | | | | | |
| 59. | 201631013264 | A FORMULATION FOR THE TREATMENT OF ARTHRITIS | Rajeev Pathak | 15-Oct-16 | 15-Dec-22 | 18-Jul-24 | Application Refused U/S 15 |

**5. Patent Applications Withdrawn / Deemed to be Withdrawn**

| S.No | Pub. No. | Title | Applicant | Date of Filing | Date of TKDL Evidences | Date of Withdrawal / Deemed to be Withdrawn | Current Status |
|---|---|---|---|---|---|---|---|
| 1. | 1947/MUM/2008 | Oral Health Care Product | Mohan Dewan | 12-Sep-08 | 09-Aug-12 | 13-Feb-18 | Withdrawn Under Section 11B(4){1} |
| 2. | 3680/CHE/2014 | A HERBAL POWDER TO TREAT MULTIPLE HEALTH DISORDERS | Dr. Srimushnam Gopalkrishna Ananda Rao | 28-Jul-14 | ----- | 04-Feb-22 | Withdrawn on 4-2-2022 |

**TKDL Outcomes against bio-piracy**

**Canadian Intellectual Property Office (CIPO)**

After conclusion of the Access Agreement with the Canadian Intellectual Property Office, citation of TKDL references as prior art have led to significant strides towards achieving the goal of preventing misappropriation of Indian Traditional Knowledge.

**1. Applications Declared 'Dead'**

| S.No | Application No. | Title | Applicant | Date of Filing | Date of TKDL Evidence | Declaration as Dead Application |
|---|---|---|---|---|---|---|
| 1. | CA 2579562 | Method for improving sleep behaviors. | Johnson & Johnson Consumer Companies Inc, United States of America | 26-Feb-07 | 24-Sep-10 | 28-Feb-11 |
| 2. | CA 2448513 | Isoflavone Concentrates, as well as methods for their production. | Aquanova German Solubilisate Technologies (AGT) GMBH, Germany | 29-Jun-02 | 12-Jan-11 | 28-Feb-11 |
| 3. | CA 2366318 | Novel pharmaceutical, dietary and cosmetic compositions comprising zinger officinale roscoe, eicosapentaenoic acid and/or docosahexaenoic acid. | IDA ROYALTY APS, Denmark | 02-Mar-00 | 25-Nov-10 | 02-Mar-11 |

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| 4. | CA 2572031 | Fat combustion accelerator. | SUNTORY LIMITED, Japan | 29-Jun-05 | 24-Sep-10 | 29-Jun-11 |
| 5. | CA 2616602 | Method of treatment or management of Stress | NATREON, INC. (United States of America) | 27-Jul-06 | 12-Oct-10 | 27-Jul-11 |
| 6. | CA 2697020 | Method of producing Plant extract formulations | QUINN PHARMACEUTICALS, Australia | 20-Aug-08 | 18-Oct-10 | 22-Aug-11 |
| 7. | CA 2409051 | Antimigraine Combination Comprising Sapindus and Emblica Extracts | LUPIN LIMITED, India | 25-May-00 | 12-Jan-11 | 22-Aug-11 |
| 8. | CA 2625433 | Carotenoid Oxidation products as Chemopreventive and Chemotherapeutic Agents | LYCORED LTD., Israel | 05-Oct-06 | 18-Oct-10 | 05-Oct-11 |
| 9. | CA 2642184 | Composition containing ginseng and cinnamon | Goliath Oil and Gas Corporation, Canada | 28-Oct-08 | 19-Oct-11 | 28-Oct-11 |
| 10. | CA 2470603 | Methods for the treatment of peripheral Neural and Vascular Ailments | THE QUIGLEY CORPORATION, USA | 06-Nov-02 | 25-Jan-11 | 07-Nov-11 |
| 11. | | Methods of making and using Theaflavin, | Nashai Biotech, LLC, United States of America | 27-Nov-07 | 25-Jan-11 | 28-Nov-11 |

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| | CA 2467664 | Theaflavin-3-Gallate, Theaflavin-3'-Gallate and Theaflavin 3,3'-Digallate and Mixtures Thereof | | | | |
| 12. | CA 2530345 | Composition and method for Mitigating a negative effect of Alcohol consumption. | EFFECTLIVE INC. (Canada) | 15-Dec-05 | 28-Mar-11 | 15-Dec-11 |
| 13. | CA 2473143 | Compositions containing Oat Straw and Willowherb Extract. | JOHNSON & JOHNSON GMBH ((Germany)) | 10-Feb-03 | 09-Feb-11 | 22-Dec-11 |
| 14. | CA 2485389 | Formulations useful in the treatment of male and female impotence. | INDENA S.P.A.(Italy) | 02-May-03 | 14-Jan-11 | 23-Jan-12 |
| 15. | CA 2485264 | Formulations useful in the treatment of male and female impotence. | INDENA S.P.A.(Italy) | 30-Apr-03 | 11-Jan-11 | 23-Jan-12 |
| 16. | CA 2601777 | Compositions and methods for enhancing cognitive function. | SIGNUM BIOSCIENCES, INC., USA | 03-Feb-06 | 23-Sep-10 | 03-Feb-12 |
| 17. | CA 2485530 | Throat Spray. | CNS, INC. USA | 14-Feb-03 | 27-Jan-11 | 14-Feb-12 |

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| 18. | CA 2445373 | Use of Phyllanthus constituents for treating or preventing infections caused by Hepatitis B viruses. | PHYTRIX AG (Germany) | 26-Apr-02 | 01-Nov-11 | 26-Apr-12 |
| 19. | CA 2555728 | Agents for sequestering serum aging factors and uses therefore. | Nu Skin International, Inc. (USA) | 04-Feb-05 | 24-Sep-10 | 26-Jul-12 |
| 20. | CA 2454171 | Curcuminoid compositions exhibiting synergistic inhibition of the expression and/or activity of Cyclooxygenase-2 | Metaproteomics, LLC. (United States of America) | 17-Jul-02 | 27-Jan-11 | 28-Sep-12 |
| 21. | CA 2588119 | Composition and method for facilitating the healing of non-healing and slow-healing wounds and ulcerations | Berkson, Lindsey (United States of America) | 17-Nov-05 | 19-Oct-10 | 19-Nov-12 |
| 22. | CA 2334621 | Composition and method for treatment of Inflammation and Pain in Mammals | Metagenics, INC. (United States of America) | 10-Apr-00 | 08-Dec-10 | 10-Dec-12 |
| 23. | CA 2632684 | Protein Kinase modulation by hops and acacia products | Metaproteomics, LLC (United States of America) | 11-Dec-06 | 13-Aug-10 | 11-Dec-12 |

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| 24. | CA 2570989 | Product of vegetal origin comprising Proanthocyanidin es and its preparation process | Investigacion Y Nutricion, S.L. (Spain) | 21-Jun-05 | 21-Sep-10 | 25-Jan-13 |
| 25. | CA 2511431 | Pharmaceutical compositions comprising Flavonoids and Menthol | Immupharm A/S (Denmark) | 19-Sep-03 | 07-Mar-11 | 28-Jan-13 |
| 26. | CA 2679847 | Methods and compositions for promoting bone and joint health | Metaproteomics, LLC. (United States of America) | 14-Mar-08 | 24-Sep-10 | 14-Mar-13 |
| 27. | CA 2649514 | Licorice Polyphenol Preparation | Kaneka Corporation (Japan) | 12-Apr-07 | 07-Oct-10 | 12-Apr-13 |
| 28. | CA 2618613 | Protein Kinase modulation by Hops and Acacia products | Metaproteomics, LLC (United States of America) | 09-Aug-06 | 05-Jan-12 | 09-Aug-13 |
| 29. | CA 2584124 | Flavonoid composition for treating oral diseases | Unigen Pharmaceuticals, INC. (United States of America) | 19-Oct-05 | 07-Oct-10 | 21-Oct-13 |
| 30. | CA 2641950 | All natural multivitamin and multimineral dietary supplement formulations for enhanced absorption and | Mannatech, INC. (United States of America) | 26-Oct-06 | 13-Aug-10 | 28-Oct-13 |

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| | | biological utilization | | | | |
| 31. | CA 2684853 | Dietary supplement for promoting wellness and weight loss and methods of administering the same | Reliv International, Inc. (United States of America) | 09-Nov-09 | 07-Jul-11 | 12-Nov-13 |
| 32. | CA 2606392 | Hair Tonic | INDENA S.P.A. (Italy) | 05-Apr-06 | 11-Oct-13 | 05-Dec-13 |
| 33. | CA 2412435 | Phytonutrient formula for the relief of Chronic pain resulting from Inflammation | WYETH (United States of America) | 13-Jun-01 | 14-Jan-11 | 03-Jan-14 |
| 34. | CA 2731454 | A herbal and vitamin C composition used for treating Inflammation and the mainenance of good health | LEBLANC, RUSSELL (Canada) | 10-Feb-11 | 09-Dec-13 | 11-Feb-14 |
| 35. | CA 2574518 | Pharmaceutical composition and non dependence coffee comprising edible Carboxylic Acid and/or its Acid Salt and Coffeine | SHIAO, SHIN-JEN (Taiwan) | 24-Oct-05 | 13-Aug-10 | 22-May-14 |

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| 36. | CA 2546464 | Sequential application of oral and topical formulations for treating wrinkles and other damage to skin | Wachsberg, Richard (Canada) | 01-May-06 | 07-May-14 | 20-Oct-14 |
| 37. | CA 2780345 | Oral Compositions Containing Extracts Of Zingiber Officinale And Related Methods | colgate-palmolive company | 01-Dec-10 | 03-Sep-13 | 01-Dec-15 |





**TKDL Outcomes against bio-piracy**

**IP Australia (AIPO)**

After conclusion of the Access Agreement with the IP Australia, citation of TKDL references as prior art have led to significant strides towards achieving the goal of preventing misappropriation of Indian Traditional Knowledge.

**1. Amendment / Modification of Claims by Applicants due to TKDL Prior Art Evidence**

**2. Patent Applications Withdrawn/Lapsed**

**1. Amendment / Modification of Claims by Applicants due to TKDL Prior Art Evidence**

| S.No | App. No. | Title | Applicant | Date of Filing | Date of TKDL Evidence | Date of Examiners Report | Date of Amendment of Claims |
|---|---|---|---|---|---|---|---|
| 1. | 2009217410 | Composition for treating skin lesions. | Dynamiclear Pty Ltd, 19 Byrnes Street Mareeba QLD 4880 Australia | 21-Sep-09 | 06-Jan-11 | 20-Jan-11 | 28-Jun-11 |
| 2. | 2008278764 | Fortification of nutritional products with olive extracts containing hydroxytyrosol and hydroxytyrosol fortified nutritional products. | PROBELTE PHARMA, S.A., Ctra. Madrid Km.389 Poligono Industrial el Tiro E-30100, Espinardo Murcia Spain | 23-Jul-08 | 10-Feb-11 | ----- | 03-Jul-12 |
| 3. | 2009222618 | NGNA compositions and methods of use | Life Science Nutrition AS, Industrivegen 42 N-6160 Hovdebygda / Norway | 07-Oct-09 | 27-Jan-11 | 29-Oct-12 | 20-Nov-12 |
| 4. | 2010316120 | Antiviral composition containing an Aleurites fordii or Daphne kiusiana extract or a fraction | Korea Research Institute of Bioscience and Biotechnology | 03-Nov-10 | ----- | 03-May-13 | 08-Oct-13 |

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| | | thereof as an active ingredient | | | | | |
| 5. | 2009313865 | Compositions and methods for alleviating hyposalivation and for providing oral comfort | M/S VDF Futureceuticals, Inc. / United States of America | 13-Nov-09 | ----- | 27-Jun-13 | 05-Nov-13 |
| 6. | 2008273073 | Extract from palm leaves and a method for producing the same | Universiti Putra Malaysia | 09-Jul-08 | 10-Jan-11 | 21-Jun-13 | 04-Mar-14 |
| 7. | 2013209310 | Composition comprising Egg White-Chalcanthite for preventing or treating Cancer | M/S Choi, Eun A / Republic of Korea | 24-Jul-13 | ----- | 15-Jun-15 | 01-Jun-16 |
| 8. | 2011257387 | Tamarind seed polysaccharide for use in the treatment of microbial infections | Indena S.p.A. | 23-May-11 | 13-May-14 | 22-Mar-16 | 23-Sep-16 |
| 9. | 2011257388 | Tamarind seed polysaccharide for use in the treatment of | M/S Indena S.p.A. / Italy | 23-May-11 | 06-Feb-15 | 22-Mar-16 | 23-Sep-16 |

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| | | inflammatory diseases | | | | | |
| 10. | 2013254948 | Herbal Preparation | M/S Perminov, Roman / Australia | 08-Nov-13 | 19-Mar-15 | 23-Oct-18 | 08-Nov-18 |
| 11. | 2019424226 | Use of geranylflavone A in preparation of drug for promoting healing of wounds | Hanyi Bio-Technology Company Ltd. | 24-Jan-19 | 11-Apr-22 | 01-Jun-23 | 08-Jun-23 |

**2. Patent Applications Withdrawn/Lapsed**

| S.No | Pub No. | Title | Applicant | Date of Filing | Date of TKDL Evidence | Date of Withdrawal/Lapsed |
|---|---|---|---|---|---|---|
| 1. | 2009240851 | A composition for treating AIDS and associated conditions. | Willfred-Ramix, Inc., United States of America | 26-Nov-09 | 11-Jan-11 | 06-Sep-11 |
| 2. | 2013249086 | Compositions for topical treatment of microbial infections | M/S Hennepin Life Sciences/ United States of America | 19-Apr-13 | 09-Jan-17 | 02-Nov-17 |

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|---|---|---|---|---|---|---|
| 3. | 2014248449 | Plant extracts with anti-diabetic and other useful activities | M/S HMI, Inc./ Cayman Islands | 12-Mar-14 | 19-Jan-16 | 07-Jan-19 |
| 4. | 2021246761 | Therapeutic treatment for the coronavirus disease COVID-19 | Mollick, Peter J | 01-Apr-21 | 05-Feb-24 | 13-Nov-24 |

**United Kingdom Patent & Trademark Office (UKPTO)**

After conclusion of the Access Agreement with the United Kingdom Patent & Trademark Office, citation of TKDL references as prior art have led to significant strides towards achieving the goal of preventing misappropriation of Indian Traditional Knowledge.

**1. List of Application(s) Terminated**

| S.No | Pub No. | Title | Applicant | Date of Filing | Date of TKDL Evidence Submission | Patent application terminated before grant |
|---|---|---|---|---|---|---|
| 1. | GB2448535 | New use for cannabinoid-containing plant extracts. | GW PHARMA LTD, Porton Down Science Park, SALISBURY, Wiltshire, SP4 0JR / United Kingdom | 19-Apr-07 | 05-Nov-10 | 19-Jun-12 |

**Major Milestones**

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| 1. | **October,1999;December 1999**<br>Approach paper on setting up of TKDL; Submission of approach paper to Standing Committee on Information Technology (SCIT), World Intellectual Property Organisation (WIPO). |
| 2. | **January, 2000**<br>Setting up of the interdisciplinary (inter-ministerial Task Force on TKDL. |
| 3. | **May, 2000**<br>Submission of TKDL Task Force Report to Department of Indian System of Medicine and Homeopathy; and presenting TKDL Concept & Vision at International forum. |
| 4. | **January 2001**<br>Cabinet Committee of Economic Affairs (CCEA's) approval for the TKDL Project. |
| 5. | **June, 2001**<br>Memorandum of Understanding (MoU) between Department of ISM&H now AYUSH) and National Institute of Science Communication (now CSIR-National Institute of Science Communication and Information Resources). |
| 6. | **July, 2001**<br>Development of TKDL software, specifications and design. |
| 7. | **October, 2001 to March, 2002**<br>Establishing TKDL team of Project Assistants (IT), Ayurveda, Patent Examiners, etc. |
| 8. | **February, 2001**<br>Presentation on Traditional Knowledge Resource Classification (TKRC) at International Patent Classification (IPC) Union for getting established WIPO-TK Task Force consisting of USPTO, EPO, JPO, China and India. |

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| 9. | **February, 2002**<br>WIPO-TK Task Force recommended addition of a new subclass under A 61; Committee of Experts recommended: (i) inclusion of approx. 200 subgroups on TK against earlier few sub-groups on medicinal plants, (ii) linking of TKRC to IPC and (iii) continuation of work on biodiversity, TK and TCE. |
| 10. | **November - December, 2002; July, 2003**<br>Internationally recognized specifications and standards for setting up of TK databases and registries based on TKDL specifications, their drafting presentation and adoption of recommendations at the 5th Session of IGC. |
| 11. | **August, 2002**<br>Constitution of Access Policy Issue Committee (APIC). |
| 12. | **March, 2003**<br>First batch of data abstraction work on 36,000 Ayurveda formulations for creating TKDL in five languages, i.e. English, German, Spanish, French and Japanese. |
| 13. | **October, 2003**<br>Release of demo TKDL CD containing a sample of 500 formulations. |
| 14. | **June 2004**<br>Initiation of the TKDL Unani project. |
| 15. | **August 2004**<br>Initiation of TKDL Ayurveda Phase II. |
| 16. | **October, 2004**<br>Concordance between IPC and TKRC and approval on linking of TKRC with IPC. |
| 17. | **August, 2005**<br>Initiation of project on TKDL Siddha.<br>Creating of TKRC containing approx. 25,000 subgroups. |
| 19. | **June 2006**<br>Approval on Access to TKDL database to international patent offices by Cabinet Committee on Economic Affairs. |
| 20. | **January 2008**<br>Initiation of activities on creation of TKDL Yoga. |
| 21. | **February 2009**<br>TKDL Access Agreement with European Patent Office (EPO). |

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| 22. | **July 2009**<br>TKDL Access Agreement with USPTO. |
| 23. | **July 2009**<br>The first prior art evidence based on TKDL citations under Third Party observations against 35 patent applications submitted to EPO leading to development of a formalised structure for filing Third Party Objections (TPOs)/oppositions at various international patent offices. |
| 24. | **October, 2009**<br>TKDL Access Agreement with German Patent and Trademark Office (DPMA). |
| 25. | **February, 2010**<br>TKDL Access Agreement with United Kingdom Intellectual Property Office.<br>TKDL Access Agreement with Canadian Intellectual Property Office (CIPO). |
| 26. | **January, 2011**<br>TKDL Access Agreement with Intellectual Property Australia (IP Australia). |
| 27. | **March 22-24, 2011**<br>International Conference on 'Utilization of the Traditional Knowledge Digital Library (TKDL) as a Model for the Protection of Traditional Knowledge. |
| 28. | **April, 2011**<br>TKDL Access Agreement with Japan Patent Office (JPO). |
| 29. | **July, 2012**<br>First Amending Agreement to TKDL Access Agreement with European Patent Office (EPO). |
| 30. | **August, 2012**<br>First Amending Agreement to TKDL Access Agreement with Canadian Intellectual Property Office (CIPO). |
| 31. | **January, 2014**<br>First Amending Agreement to TKDL Access Agreement with United Kingdom Intellectual Property Office (IPO). |
| 32. | **May, 2014**<br>TKDL Access Agreement with Chile Patent Office (INAPI). |

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| 33. | **June, 2014**<br>First Amending Agreement to TKDL Access Agreement with Japan Patent Office (JPO). |
| 34. | **October 2015**<br>TKDL Access Agreement with Intellectual Property Corporation of Malaysia (MyIPO) |
| 35. | **June, 2017**<br>TKDL Access Agreement with Rospatent (Russia). |
| 36. | **June, 2017**<br>TKDL Access Agreement with INDECOPI (Peru). |
| 37. | **October 2017**<br>First Amending Agreement to TKDL Access Agreement with Chile Patent Office (INAPI). |
| 38. | **September 2018**<br>Initiation of Project on Ayurveda from Kerala manuscripts. |
| 39. | **October 2018**<br>Initiation of Project on Sowa Rigpa. |
| 40. | **April 2019**<br>TKDL Access Agreement with Spanish Patent and Trademark Office. |
| 41. | **October 2019**<br>Second Amending Agreement to TKDL Access Agreement with IP Australia. |
| 42. | **October, 2021**<br>TKDL Access Agreement with Danish Patent and Trademark Office. |
| 43. | **August 2022**<br>Cabinet approves widening access of the Traditional Knowledge digital library database to users, besides patent offices. |
| 44. | **September 2022**<br>TKDL Access Agreement with National Industrial Property Institute, France. |
| 45. | **February, 2023**<br>TKDL Access Agreement with Eurasian Patent Office. |